

|                                                                                           |  |                                |                                                                                                                                                                 |                        |                     |
|-------------------------------------------------------------------------------------------|--|--------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|---------------------|
| <b>SOLICITATION, OFFER,<br/>AND AWARD</b><br><i>(Construction, Alteration, or Repair)</i> |  | 1. SOLICITATION NUMBER<br><br> | 2. TYPE OF SOLICITATION<br><input type="checkbox"/> SEALED BID (IFB)<br>INVITATION FOR BID<br><input type="checkbox"/> NEGOTIATED (RFP)<br>REQUEST FOR PROPOSAL | 3. DATE ISSUED<br><br> | PAGE    OF    PAGES |
|-------------------------------------------------------------------------------------------|--|--------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|---------------------|

**IMPORTANT** - The "offer" section on the reverse must be fully completed by offeror.

|                    |                                        |                   |
|--------------------|----------------------------------------|-------------------|
| 4. CONTRACT NUMBER | 5. REQUISITION/PURCHASE REQUEST NUMBER | 6. PROJECT NUMBER |
|--------------------|----------------------------------------|-------------------|

|                      |      |                             |
|----------------------|------|-----------------------------|
| 7. ISSUED BY<br><br> | CODE | 8. ADDRESS OFFER TO<br><br> |
|----------------------|------|-----------------------------|

|                             |         |                                                                   |
|-----------------------------|---------|-------------------------------------------------------------------|
| 9. FOR<br>INFORMATION CALL: | a. NAME | b. TELEPHONE NUMBER <i>(Include area code) (NO COLLECT CALLS)</i> |
|-----------------------------|---------|-------------------------------------------------------------------|

**SOLICITATION**

**NOTE:** In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

11. The contractor shall begin performance within \_\_\_\_\_ calendar days and complete it within \_\_\_\_\_ calendar days after receiving  
☐ award,    ☐ notice to proceed. This performance period is ☐ mandatory    ☐ negotiable. **(See \_\_\_\_\_).**

|                                                                                                                                                                                                                                |                    |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|
| 12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS?<br><i>(If "YES", indicate within how many calendar days after award in Item 12b.)</i><br><input type="checkbox"/> YES <input type="checkbox"/> NO | 12b. CALENDAR DAYS |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and \_\_\_\_\_ copies to perform the work required are due at the place specified in Item 8 by \_\_\_\_\_ **(hour)**  
 local time \_\_\_\_\_ (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes  
 containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☐ is,    ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than \_\_\_\_\_ calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

**OFFER (Must be fully completed by offeror)**

|                                                    |               |                                                                  |  |
|----------------------------------------------------|---------------|------------------------------------------------------------------|--|
| 14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code) |               | 15. TELEPHONE NUMBER (Include area code)                         |  |
|                                                    |               | 16. REMITTANCE ADDRESS (Include only if different than Item 14.) |  |
| CODE                                               | FACILITY CODE |                                                                  |  |

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within \_\_\_\_\_ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

**19. ACKNOWLEDGMENT OF AMENDMENTS**

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

| AMENDMENT<br>NUMBER |  |  |  |  |  |  |  |  |  |  |
|---------------------|--|--|--|--|--|--|--|--|--|--|
| DATE                |  |  |  |  |  |  |  |  |  |  |

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)

20b. SIGNATURE

20c. OFFER DATE

**AWARD (To be completed by Government)**

21. ITEMS ACCEPTED:

22. AMOUNT

23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN  
(4 copies unless otherwise specified)

ITEM

25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES  
CODE AT

☐ 10 U.S.C. 3204(a) ( ) ☐ 41 U.S.C. 3304(a) ( )

26. ADMINISTERED BY

27. PAYMENT WILL BE MADE BY

**CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE**

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return \_\_\_\_\_ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.

☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN  
(Type or print)

31a. NAME OF CONTRACTING OFFICER (Type or print)

30b. SIGNATURE

30c. DATE

31b. UNITED STATES OF AMERICA

31c. DATE

BY

## **Section 00 00 00 - Procurement and Contracting Requirements**

Barracks Initiative (Package #2), MCB Camp Lejeune and MCAS New River

Defense Priorities Allocation System (DPAS) Priority Rating: DO-C2

Date: 04 Mar 2026

## **Section 00 01 10 - Table of Contents**

### **TABLE OF CONTENTS**

#### **1. GENERAL**

1.1 GENERAL OVERVIEW OF PROCUREMENT PROCESS

1.2 GENERAL OVERVIEW OF CONTRACT

#### **2. BASIS FOR AWARD**

#### **3. EVALUATION FACTORS FOR AWARD**

#### **4. PROPOSAL REQUIREMENTS**

4.1 SITE VISIT

4.2 PROPOSAL SUBMISSION INSTRUCTIONS

4.3 PRE-PROPOSAL INQUIRIES (PPIs)

4.4 CONTRACT OPPORTUNITIES (SAM.GOV)

#### **5. INCORPORATION OF TECHNICAL PROPOSAL**

#### **6. ATTACHMENTS: MAY BE LOCATED ON CONTRACT OPPORTUNITIES AND PIEE UNDER ATTACHMENTS**

ATTACHMENT A - PRE-PROPOSAL INQUIRY (PPI) LOG TEMPLATE

ATTACHMENT B - PIEE VENDOR ACCESS INSTRUCTIONS

ATTACHMENT C - CONSTRUCTION AND DESIGN EXPERIENCE PROJECT DATA SHEET

ATTACHMENT D - PAST PERFORMANCE QUESTIONNAIRE

ATTACHMENT E - HISTORICAL SMALL BUSINESS UTILIZATION (*PHASE II*)

ATTACHMENT F - SMALL BUSINESS PARTICIPATION COMMITMENT DOCUMENT (*PHASE II*)

ATTACHMENT G - INDIVIDUAL SMALL BUSINESS SUBCONTRACTING PLAN (*PHASE II*)

ATTACHMENT H - DB REQUEST FOR PROPOSAL (RFP) (*PHASE II*)

ATTACHMENT I - PRICE PROPOSAL FORM (*PHASE II*)

## Section 00 10 00 - Solicitation, Contract Line Item Number (CLIN) Schedule

### Additional Information/Notes

| Item | Supplies/Service                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Quantity | Unit    | Unit Price | Amount |
|------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|---------|------------|--------|
| 0001 | <p>Firm Fixed Price for a Design-Build Barracks Initiative located at MCB Camp Lejeune and MCAS New River. Price includes design and construction of barracks and all related Management, supervision, quality control, labor, equipment, and materials to provide a complete and usable facility. Price includes all incidental related work to support the design and construction including permits, utility connection fees, taxes, bond cost, overhead and profit, complete in accordance with the RFP and all Amendments, but not including work indicated or specified to be provided under any other bid items.</p> <p>Pricing Arrangement: Firm Fixed Price</p> | 1        | Project |            |        |

## Section 00 21 00 - Instructions

### 1. GENERAL

#### 1.1 GENERAL OVERVIEW OF PROCUREMENT PROCESS

This acquisition is being solicited on an unrestricted basis, with Full and Open Competition.

The NAICS code for this procurement is 236220 and the Size Standard is \$45,000,000.

In accordance with DFARS 236.204, the magnitude of construction for this project is over \$500,000,000.

This solicitation is formatted as a Request for Proposal (RFP) and will be advertised utilizing FAR Part 36 subpart for two-phase Design-Build Selection Procedures and FAR Part 15 - Contracting by Negotiations resulting in a Firm Fixed Price (FFP) contract for construction services.

**\*\* A compensatory stipend of \$200,000 will be provided to unsuccessful Offerors that participate in Phase II of this procurement. \*\***

This method permits evaluation of proposals based on price competition, technical merit and other factors; permits impartial and comprehensive evaluation of offerors' proposals; permits discussions if necessary; and ensures selection of the source whose performance provides the best value to the Government.

#### 1.2 GENERAL OVERVIEW OF CONTRACT

The general intent of this solicitation is to award a Fixed Price Construction Contract is for Design-Build (DB) construction services for the Barracks Initiative (Package #2) located at the Marine Corps Base (MCB) Camp Lejeune, North Carolina and Marine Corps Air Station (MCAS) New River.

**MCB Camp Lejeune Hadnot Point:** Construct 3 story bachelor enlisted quarters (BEQ) to contain 300 total 2+0 rooms; two buildings of (150) 2+0 rooms each. Building demolition (off main replacement BEQ site): BEQs HP51, HP53, HP55, and HP57. Community and service core areas consist of laundry facilities, vending/MCX24 areas, multi-purpose rooms, community kitchens, administrative offices, housekeeping areas, mechanical, electrical and telecommunication rooms, bulk storage and public restrooms. Project will also include a recreation shelter with amenities.

**MCB Camp Lejeune French Creek:** Construct a three-story bachelor enlisted quarters (BEQ) to contain 85 total 2+0 rooms; one building. Building Demolition (off main replacement BEQ site): BEQ AS4200, support building AS4201. Community and service core areas consist of laundry facilities, vending/MCX24 areas, multi-purpose rooms, community kitchens, administrative offices, housekeeping areas, mechanical, electrical and telecommunication rooms, bulk storage and public restrooms. Project will also include a recreation shelter with amenities.

**MCAS New River:** Construct 3-4 multi-story bachelor enlisted quarters (BEQ) to contain 180 total 2+0 rooms; one building. Building Demolition (off main replacement BEQ site): BEQ 1340 and AS4024 (New River HIIT Center). Community and service core areas consist of laundry facilities, vending/MCX24 areas, multi-purpose rooms, community kitchens, administrative offices, housekeeping areas, mechanical, electrical and telecommunication rooms, bulk storage and public restrooms. Project will also include a recreation shelter with amenities.

### 2. BASIS FOR AWARD

The Government reserves the right to eliminate from consideration for award any or all offers at any time prior to award of the contract; to negotiate with offerors in the competitive range; and to award the contract to the offeror submitting the proposal determined to represent the best value--the proposal most advantageous to the Government, cost/price and other factors considered.

The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In addition, if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

The tradeoff process is selected as appropriate for this acquisition. The Government considers it to be in its best interest to allow consideration of award to other than the lowest priced offeror or other than the highest technically rated offeror.

This procurement will utilize two-phase design-build selection procedures as prescribed in FAR Subpart 36.3, where non-price Factors 1-4 will be evaluated in Phase I, and non-price Factors 5-6 and price will be evaluated in Phase II. Factor 1 will only be rated Acceptable or Unacceptable. If an offeror is rated Unacceptable in Factor 1, then they will not be considered for Phase II, unless corrected through discussions, if held. In making the best value award decision after Phase II, the Government will consider non-price Factors 2-6 and price. The relative order of importance of the non-price evaluation factors is the technical factors (Factors 2, 3, 5, and 6) are of equal importance to each other and, when combined, are equal in importance to the past performance evaluation/performance confidence assessment factor (Factor 4). When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-price evaluation factors) are significantly more important than price.

Any proposal found to have a Deficiency in meeting the stated solicitation requirements or performance objectives will be considered ineligible for award, unless the Deficiency is corrected through discussions, if held. An **Unacceptable** rating in any of the non-price factors will result in an overall rating of "**Unacceptable**" for the non-price factors, unless corrected through discussions. Proposals may be found to have either a Significant Weakness or multiple Weaknesses that impact either the individual factor rating or the overall rating for the proposal. The evaluation report must document the evaluation board's assessment of the identified Weakness(s) and the associated risk to successful contract performance resulting from the Weakness(s). This assessment must provide the rationale for proceeding to award without discussions.

### 3. EVALUATION FACTORS FOR AWARD

The solicitation requires the evaluation of price and the following non-price factors:

#### **Phase I:**

Factor 1 - Technical Approach

Factor 2 - Experience

Factor 3 - Safety

Factor 4 - Past Performance

#### **Phase II:**

Factor 5 - Technical Solution

Factor 6 - Small Business Utilization and Participation

The distinction between Experience and Past Performance is Experience pertains to the types of work and volume of work completed by a contractor that are comparable to the types of work covered by this requirement, in terms of size, scope, and complexity. Past Performance pertains to both the relevance of recent efforts and how well a contractor has performed on the contracts.

For this two-phase design-build procurement, Factors 1-4 will be evaluated in Phase I and Factors 5-6 will be evaluated in Phase II. Factor 1 will only be rated Acceptable or Unacceptable. If an offeror is rated Unacceptable in Factor 1, it will not be considered for Phase II, unless corrected through discussions, if held. In making the best value award decisions after Phase II, the Government will consider Factors 2-6 and price. The relative order of importance of the non-price evaluation factors are the technical factors (Factors 2, 3, 5, and 6) are of equal importance to each other and, when combined, are equal in importance to the past performance evaluation/performance confidence assessment factor (Factor 4). When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-price evaluation factors) are significantly more important than price.

After evaluating Phase I proposals, the source selection authority shall select the most highly qualified offerors and request that only those offerors submit Phase II proposals. In accordance with FAR 36.303-1(a)(4), the solicitation shall state that a maximum of three (3) offerors will be selected to submit Phase II proposals unless the contracting officer determines that a number greater than three (3) is in the Government's best interest.

The importance of price will increase if the Offerors' non-price proposals are considered essentially equal in terms of overall quality, or if price is so high as to significantly diminish the value of a non-price proposal's superiority to the Government. Award will be made to the responsible Offeror whose offer conforms to the solicitation and represents the best value to the Government, price and non-price factors considered.

## **BASIS OF EVALUATION AND SUBMITTAL REQUIREMENTS FOR EACH FACTOR.**

### **Price Proposal (Phase II):**

#### **(i) Solicitation Submittal Requirements:**

The offeror shall submit one (1) electronic copy via PIEE of the solicitation submittal requirements identified below. The Price and Non-price proposals shall be submitted in separate files and submitted in Portable Document Format (PDF). In addition, non-price/technical information included in the price proposal will not be considered; likewise, price information included in the non-price/technical proposal will not be considered. All required proposal documents shall be submitted in accordance with FAR 15.208.

All submissions shall include the following:

1. Executed SF1442. Offeror shall insert its company name and address in Block #14, telephone number in Block #15, acknowledge all amendments in Block #19 (if applicable), name and title of person authorized to sign in Block #20A, signature in Block #20B, and offer date in Block #20C of the SF1442. In addition, Offeror shall provide a cover page with solicitation number, solicitation title, Offeror name, address, phone number, fax number, Unique Entity Identifier (UEI), CAGE code, Federal Tax ID number, Point of Contact (POC), POC phone number, and POC email address with its proposal.
2. Completed Price Proposal Form. The Offeror is required to submit a complete Price Proposal Form that includes completion of all line items. Pricing information is not required to be completed under Section 00 10 00 - Solicitation Contract Form in SF 1442.
3. Bid Bond (SF-24). Offeror shall submit a bid bond (SF-24) in the amount of 20% of total project bid price for the project or \$3M, whichever amount is less. The bid bond shall be in the name of the offeror identified on the SF1442.
4. SAM registration. Offeror shall ensure current registration on the SAM Website, [www.sam.gov](http://www.sam.gov), including Annual Representations and Certifications are complete and updated for this procurement. If a Representation or Certification required by Section 00 45 00 of the RFP is not provided in SAM, include the representation or certification in your price proposal. Please also submit the representation and certification for 52.209-13 - Violation of Arms Control Treaties or Agreements- Certification separately. It is not included in the annual representations and certifications in the System for Award Management. The Contracting Officer and/or Contract Specialist will verify the Offeror's registration in SAM only at time of submission of an offer and at the time of contract award, unless an exemption applies under FAR 4.1102(a)
5. FAPIIS. Offeror shall ensure Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete, as required by FAR 52.209-7, Information Regarding Responsibility Matters.
6. VETS-4212 registration. Confirmation of filing of Veterans' Employment and Training (VETS-4212) for the 2025 filing cycle, if the Offeror is required to submit. Offeror shall ensure a current VETS-4212 report has been submitted to the Department of Labor (DOL) website, <http://www.dol.gov/vets/vets4212.htm>. An email confirmation of submission can be requested and received by the Offeror from the DOL website and submitted in the price proposal. If the Offeror is not required to submit a report to VETS-4212, include a brief statement and justification explaining why the Offeror is not required to submit a report. Visit the VETS-4212 website for details concerning if your company is required to submit a VETS-4212 report and to request an email confirmation of submission.
7. Small Business Subcontracting Plan (Reference FAR 52.219-9 ALT II and DFARS 252.219-7003).

In accordance with FAR 19.7, all other than small businesses shall submit a Small Business Subcontracting Plan (SBSP) utilizing the template provided as Attachment G. Acceptability of the SBSP will be considered a responsibility matter. The SBSP will not be evaluated or rated by the SSEB but reviewed by a Small Business Professional/Authorized Representative and the Contracting Officer for acceptability. The SBSP shall be negotiated and/or accepted within the time

specified by the Contracting Officer. Failure to negotiate an acceptable subcontracting plan within the time limit prescribed by the Contracting Officer will render the Offeror ineligible for award of the contract. The SBSP will be incorporated into the resulting contract.

NAVFAC's command-wide small business subcontracting targets are shown below. These may be higher or lower than percentages that would represent, challenging, small business subcontracting goals for this acquisition consistent with efficient and effective performance of the contract. These targets are based on a percentage of total planned subcontract dollars.

- Small Business (SB) 40%
- Small Disadvantaged Business (SDB) 5%
- HUBZone SB 3%
- Woman-Owned Small Business (WOSB) 9%
- Service-Disabled Veteran-Owned Small Business (SDVOSB) 5%

The SBSP shall be consistent with the commitments offered in the Small Business Utilization and Participation factor. In accordance with DFARS 215.304(c)(i), when an evaluation assesses the extent that small businesses are specifically identified in proposals, those small businesses considered in the evaluation shall be listed in the SBSP.

Please note that SBSP goals and the participation rates provided in the Small Business Participation Commitment Document (SBPCD) WILL NOT be the same. The participation rates within the SBPCD are provided as percentages of the total contract value; subcontract plan goals are provided as a percentage of planned subcontracting dollars. While the percentages will differ, the types of products/services identified in the SBSP, should be the same as those products/services identified in the SBPCD. Likewise, the planned small business subcontract dollars in the SBSP will be equal to (or in some cases greater than) the extent of small business participation identified in the SBPCD.

1. Bank Reference. One (1) Signed Bank Reference demonstrating adequate financial resources. If offeror's firm has a line of credit, provide information on how many figures the offeror can borrow against the line of credit (i.e. medium 6 figures - exact line of credit is not required).
2. Financial Statements. The Offeror shall provide the latest three complete fiscal year financial statements for the prime contractor, certified by an independent accounting firm, if practicable, or signed by an authorized officer of the organization. Submit evidence of availability of working/operating capital, which will be used for the performance of the resultant contract. For Joint Venture arrangements, submit the latest three complete fiscal year financial statements for each company in the Joint Venture and discuss the financial responsibilities among the companies.
3. Facilities and Equipment. Provide a description of offeror's facilities and equipment.
4. Other Work. Provide a list of offeror's other work presently under contract.

(ii) Basis of Evaluation:

The Government will evaluate price based on the total price. Total price consists of the basic requirements and all option items (See Attachment I - Price Proposal Form). The Government intends to evaluate all options and has included the provision FAR 52.217-5, Evaluation of Options (JUL 1990) in Section 00 21 16 of the solicitation. In accordance with FAR 52.217-5, evaluation of options will not obligate the Government to exercise the option(s). Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price:

- (i) Comparison of proposed prices received in response to the RFP.
- (ii) Comparison of proposed prices with the IGCE.
- (iii) Comparison of proposed prices with available historical information.
- (iv) Comparison of market survey results.

Although required to be submitted with offeror's price proposal, Items 3 through 11 above will not be evaluated as part of the price proposal. This information will be utilized by the Government in the responsibility determination and for considering responsiveness to the solicitation requirements.

**Non-Price Factors:**

FAR Part 9.6 defines Contractor team arrangements. Contractor team arrangement, as used in this subpart, means an arrangement in which -- (1) Two or more companies form a partnership or joint venture to act as a potential prime Contractor; or (2) A potential prime Contractor agrees with one or more other companies to have them act as its subcontractors under a specified Government contract or acquisition program.

If an Offeror is utilizing experience information of affiliates/subsidiaries/parent /LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate how the affiliate/subsidiary/parent/LLC/LTD member companies will have involvement in the performance of the contract in order for the experience information of the affiliate/subsidiary/parent/LLC/LTD member companies to be considered. The proposal shall state specific commitments of technical resources (e.g., personnel, management, equipment that the affiliate/subsidiary/parent/LLC/LTD member companies shall commit to the performance of this contract). In particular, the proposal shall clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in the performance of the contract. Vague commitments to support are likely insufficient; rather, they must demonstrate intent/manner of actual performance on the contract action being solicited. The information pertaining to affiliates/subsidiaries/parent/LLC/LTD member companies must be included within Factor 1 but does not need to be included on a Project Data Sheet.

The Offeror shall submit a signed copy of partnership agreement, teaming agreement, or letter of commitment for each member of the Offeror's team (e.g., partner, team member, subcontractor, parent company, subsidiary, or other affiliated company, etc.) whose projects are submitted to demonstrate Construction or Design Experience. The Government will not consider any project submitted for Factor 2 if it was performed by a firm other than the Offeror and there is no supporting partnership agreement, teaming agreement, or letter of commitment demonstrating the necessary level of meaningful involvement.

Refer to individual factors for page limitations. Information submitted beyond any of the page limits below will not be considered.

Note: If proposing as a Joint-Venture (JV), the offeror must submit the POC, UEI, and Cage Code for each JV partner.

### **Factor 1, Technical Approach:**

#### **(i) Solicitation Submittal Requirements:**

The composition and management of the firms proposed as the design-build (DB) team for this contract will be evaluated in this factor.

The Offeror shall submit the following information:

- (1) Provide a simple organizational chart that clearly identifies the lines of authority between the proposed primary construction firms and primary design firms for this contract. Include a brief description of the role and responsibility of each entity not to exceed (1) one page. If the experience of an entity is being claimed in Factor 2, that entity must be named in the organizational chart.
- (2) In addition, the Offeror shall submit a signed copy of a joint venture agreement, partnership agreement, teaming agreement, approved mentor-protégé agreement (MPA), or letter of commitment signed by each member of the Offeror's team identified above (e.g., joint venture member, partner, team member, subcontractor, parent company, subsidiary, or other affiliated company, etc.). Letters of commitment for the Designer of Record shall be addressed from the Designer of Record to the Offeror. The Designer of Record's letter of commitment shall be signed by the Designer of Record's signing authority.

#### **(ii) Basis of Evaluation:**

The assessment of the Offeror's technical approach will be used as a means to review the organizational structure, roles, responsibilities, and management strategy proposed by the Offeror. The Government will evaluate the suitability of the team's structure and integration plan for successfully executing the proposed technical solution, including any proposed use of industrialized or alternative construction methods. This factor will be rated on an **Acceptable** or **Unacceptable** basis.

### **Factor 2, Experience:**

(i) Solicitation Submittal Requirements:

The Offeror shall submit the following information:

**Construction Experience:**

Submit a minimum of three (3) and a maximum of five (5) relevant construction projects for the Offeror that best demonstrates your experience on relevant projects that are similar in Size and Scope/Complexity to the RFP. Offeror must have performed as **prime contractor** on all submitted projects. Experience of proposed subcontractors will not be considered. Additionally, the Offeror's experience as a subcontractor will not be considered.

For purposes of this evaluation, a relevant project is further defined as:

**Size:** New construction of a single facility 45,000 square feet or greater. At least one project must have a final construction cost of \$125,000,000.

**Scope/Complexity:** At least two relevant projects must demonstrate experience with new construction of lodging facilities such as barracks, commercial hotels, dormitories/residences etc. At least one relevant project must demonstrate experience of a vertical multi-story facility and is not limited to a lodging facility.

Projects submitted for the Offeror shall be completed within the past thirteen (13) years of the date of issuance of this RFP.

Projects which are not complete as of the date of issuance of this RFP will be considered "Not Relevant." Additionally, projects completed prior to thirteen (13) years from the date of issuance of this RFP will be considered "Not Relevant."

A project is defined as a construction project performed under a single task order or contract. For multiple award and indefinite delivery/indefinite quantity type contracts, the contract as a whole shall not be submitted as a project; instead, Offerors shall submit the work performed under a task order as a project.

The attached Construction & Design Experience Project Data Sheet (Attachment C) is **MANDATORY** and **SHALL** be used to submit project information. The Government will not consider information submitted in addition to this form nor will the Government consider information submitted via any other medium. Individual blocks on this form may be expanded; however, total length for each project data sheet shall not exceed two (2) pages. If the same project is being used to demonstrate construction and design experience, the Offeror must submit separate Project Data Sheets for construction and design.

For all submitted projects, the description of the project shall clearly describe how the project meets the required timeframe as well as the above Size and Scope/Complexity requirements and clearly provides the final construction cost. **The absence of any such information or information that does not clearly address the requirements may result in the project being considered Not Relevant, which could result in a rating of UNACCEPTABLE for this Factor which renders the proposal ineligible for award.**

If the Offeror is a Joint Venture (JV), relevant project experience should be submitted for projects completed by the Joint Venture entity. If the Joint Venture does not have shared experience, projects may be submitted for the Joint Venture members. If a project was performed by a JV, and not all partners from that JV are on the JV proposed for this contract, the offeror shall clearly demonstrate what portion of the work was performed by the JV member offering on this contract and shall not include work performed by the JV as a whole. The JV member proposed for this contract shall specifically address field work performed by that JV member including field staffing and direct field work oversight. The JV member proposed for this contract shall also address home office management performed by that JV member including the number /percentage of employees provided for the overall contract by the JV members as well as the overall percentage of work performed by the JV member. The Offeror shall also submit a SIGNED copy of the Joint Venture agreement indicating the proposed participation of each Joint Venture member. **Offerors are still limited to a total of five (5) projects combined.**

Offerors that are not submitting as a JV may submit a project where it performed as a JV with another entity but must clearly demonstrate how their work performed met Size, Scope/Complexity as defined above or the project will be considered Not Relevant.

If an Offeror is utilizing experience information of affiliates/subsidiaries/parent/LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent firm will have meaningful involvement in the performance of the contract. The proposal shall state specific commitments of technical resources (e.g. personnel, equipment) that the affiliate/subsidiary/parent/LLC/LTD member companies commit

to the performance of this contract. In particular, the proposal will clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member that will be located at the worksites and company offices in the city/area of the project. The proposal shall also describe specific roles of the affiliate/subsidiary/parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in performance of the contract. Vague commitments to support are likely insufficient; rather, they must demonstrate intent/manner of actual performance on the contract action being solicited. The information pertaining to affiliates/subsidiaries/parent/LLC/LTD member companies must be included within Factor 1 but does not need to be included on a Project Data Sheet. Failure to submit this information may result in a lower rating.

### **Design Experience:**

Offerors shall submit a minimum of three (3) and a maximum of five (5) relevant design projects performed and completed by the proposed designer of record that best demonstrates design experience on relevant projects that are similar in Size and Scope/Complexity to the RFP. The Government will only review five (5) projects for design. Any projects submitted in excess of five (5) for Design Experience will not be considered.

For purposes of this evaluation, a relevant project is further defined as:

**Size:** New construction of a single facility 45,000 square feet or greater. At least one project must have a final construction cost of \$125,000,000.

**Scope/Complexity:** At least two relevant projects must demonstrate experience with new construction of lodging facilities such as barracks, commercial hotels, dormitories/residences etc. At least one relevant project must demonstrate experience of a vertical multi-story facility and is not limited to a lodging facility.

A project submitted under design experience will meet the recency requirement if the construction effort is ongoing, but the design completion date was reached within the thirteen (13) years of the date of issuance of this RFP. Each relevant completion date shall be clearly stated on the Construction & Design Experience Project Data Sheet.

A project is defined as a complete design effort performed under a single task order or contract/subcontract. For multiple award and indefinite delivery/indefinite quantity type contracts, the contract as a whole shall not be submitted as a project; rather Offerors shall submit the work performed under a task order as a project.

The attached Construction & Design Experience Project Data Sheet (Attachment C) is **MANDATORY** and **SHALL** be used to submit project information. The Government will not consider information submitted in addition to this form nor will the Government consider information submitted via any other medium. Individual blocks on this form may be expanded; however, total length for each project data sheet shall not exceed two (2) pages. If the same project is being used to demonstrate construction and design experience, submit separate Project Data Sheets for construction and design.

For all submitted projects, the description of the project shall clearly describe the scope of work performed and the relevancy to the Size and Scope/Complexity of this RFP.

The proposal shall state specific commitments of technical resources (e.g. personnel, equipment) that the affiliate/subsidiary/parent/LLC/LTD member companies commit to the performance of this contract. In particular, the proposal will clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member that will be located at the worksites and company offices in the city/area of the project. The proposal shall also describe specific roles of the affiliate/subsidiary/parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in performance of the contract. Vague commitments to support are likely insufficient; rather, they must demonstrate intent/manner of actual performance on the contract action being solicited. The information pertaining to affiliates/subsidiaries/parent/LLC/LTD member companies must be included within Factor 1 but does not need to be included on a Project Data Sheet. Failure to submit this information may result in a lower rating.

The Offeror may utilize experience of a design subcontractor to demonstrate design experience. The Offeror must provide a supporting joint venture agreement, partnership agreement, teaming agreement, or letter of commitment and an explanation of the involvement for the design subcontractor. Offerors proposing multiple design firms should submit relevant project experience for all design firms. Failure to do so may result in a lower rating. Offerors are still limited to a total of five (5) projects combined.

(ii) Basis of Evaluation:

The basis of evaluation will include the Offeror's demonstrated experience and depth of experience in performing relevant construction and design projects as defined in the solicitation submittal requirements. The assessment of the Offeror's relevant experience will be used as a means of evaluating the capability of the Offeror to successfully meet the requirements of the RFP. The Government will only review five (5) projects for construction and five (5) for design. Any projects submitted in excess of the five (5) for Construction Experience and five (5) for Design Experience will not be considered.

Proposals demonstrating projects where the Offeror and the proposed design firm(s) have previously worked together may be considered more favorably than those that have not worked together.

Proposals demonstrating design-build experience may be considered more favorably than those that do not have design-build experience.

**Factor 3, Safety:**

**(i) Solicitation Submittal Requirements:**

The Offeror shall submit the following information:

The Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate; and Total Case Rate (TCR) for the specified five (5) Calendar Years (CY), as well as a safety narrative as described further below. For a partnership, joint venture, the Offeror shall submit separate DART, TCR for the specified five (5) CY for each contractor who is part of the partnership or joint venture; however, only one safety narrative is required. Any fatalities experienced within this 5-year timeframe must be explained in detail, to include root cause and corrective actions.

**NOTE:** DART and TCR shall not be submitted for subcontractors.

1. DART Rate: Submit five (5) previous complete calendar years' [CY2025, CY2024, CY2023, CY2022, and CY2021] worth of data (not an overall average). If the Offeror has no DART rate for any year, affirmatively state so and explain why. If the DART rate calculation is 0.0, affirmatively state there were no DART cases during that year. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required, that includes any corrective actions taken for improvement.

- a. Dart cases include injuries or illnesses resulting in death, days away from work, and/or restricted work or transfer to another job days beyond the day of injury/illness.
- b. Calculation of DART rate: Multiply the total number of DART cases by 200,000 and then divide by the number of employee labor hours worked.

2. TCR Rate: Submit five (5) previous complete calendar years' [CY2025, 2024, 2023, 2022, and 2021] worth of data (not an overall average). If the Offeror has no TCR rate for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required, that includes any corrective actions taken for improvement.

- a. TCR cases include injuries or illnesses resulting in death, days away from work, restricted work or transfer to another job days beyond the day of injury/illness, medical treatment beyond first aid, or loss of consciousness.
- b. Calculation of TCR rate: Multiply the total number of TCR incidents by 200,000 and then divide by the number of employee labor hours worked.

3. Technical Approach for Safety: Submit a narrative that addresses the following:

- a. Describe the Offeror's approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksites analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.
- b. Describe the evaluation process used to select potential subcontractors.

- c. Describe the processes of how the Offeror will oversee safety compliance of subcontractors at all levels throughout the performance of the contract (to include their own in-house workforce).
- d. The Technical Approach to Safety narrative shall be limited to two pages.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

(ii) Basis of Evaluation:

The Government is seeking to determine that the Offeror has consistently demonstrated a commitment to safety and that the Offeror plans to properly manage and implement safety procedures for itself and its subcontractors. The evaluation will collectively consider the DART rate, TCR, Technical Approach to Safety, and other sources of information available to the Government as part of such collective evaluation. The board will evaluate the DART rates and TCR to determine if the Offeror has demonstrated a history of safe work practices taking into account any negative trends and extenuating circumstances that impact the rating.

1. DART Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the Offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

- a. Missing data without an explanation is considered a Deficiency.
- b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) may indicate a Strength.
- c. An increasing DART rate trend could be considered a Weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.
- d. This chart correlates the DART rate to the level of risk:

| <u>Risk</u>         | <u>DART Rate</u> |
|---------------------|------------------|
| Very Low Risk       | Less Than 1.0    |
| Low Risk            | From 1.0 to 1.99 |
| Moderate Risk       | From 2.0 to 2.99 |
| High Risk           | From 3.0 to 4.0  |
| Extremely High Risk | Greater than 4.0 |

2. TCR Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the Offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

1. Missing data without an explanation is considered a Deficiency.
2. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) may indicate a Strength.
3. An increasing TCR rate trend could be considered a Weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.
4. This chart correlates the TCR rate to the level of risk:

| <u>Risk</u>   | <u>TCR Rate</u> |
|---------------|-----------------|
| Very Low Risk | Less Than 2.49  |

|                     |                  |
|---------------------|------------------|
| Low Risk            | From 2.5 to 3.49 |
| Moderate Risk       | From 3.5 to 4.49 |
| High Risk           | From 4.5 to 5.99 |
| Extremely High Risk | Greater than 6.0 |

3. The Technical Approach to Safety Narrative. To determine the degree to which the Offeror:

1. Describes a viable approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.
2. Describes a methodical process of evaluating subcontractor's safety performance in their selection process.
3. Describes a logical management plan to hold themselves and their subcontractors accountable for adhering to the safety requirements of the contract.
4. The Technical Approach to Safety narrative shall be limited to two (2) pages. Information on pages beyond this will not be considered.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

#### **Factor 4, Past Performance:**

Recent, relevant projects are determined within the requirements for Factor 2 - Experience.

(i) Solicitation Submittal Requirements:

If a completed Contractor Performance Assessment Reporting System (CPARS) evaluation is available, it shall be submitted with the proposal for each project included in Factor 2 for **construction experience**. If a completed A-E CPARS evaluation is available, it shall be submitted with the proposal for each project included in Factor 2 for **design experience**. The offeror shall include all completed CPARS evaluations (interim and final) for a project. If there is not a completed CPARS evaluation, then submit a Past Performance Questionnaire (PPQ) (Attachment D) for each project included in Factor 2 for both Construction Experience and Design Experience.

The Offeror should provide completed PPQ's in the proposal. Offerors shall not incorporate by reference into their proposal PPQs previously submitted for other RFPs. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation. If the Offeror is unable to obtain a completed PPQ from a client for a project(s) before proposal closing date, the Offeror shall complete and submit with the proposal the first page of the PPQ, which will provide contract and client information for the respective project(s). The Government may make reasonable attempts to contact the client noted for that project(s) to obtain the PPQ information. However, Offerors should follow-up with clients/references to help ensure timely submittal of questionnaires. Offerors should ensure correct phone numbers and email addresses are provided for the client point of contact. If the client requests, questionnaires may be submitted directly to the Government's point of contact, Mary Ann Pool, via email at mary.a.pool3.civ@us.navy.mil prior to proposal closing date.

#### **AN OFFEROR SHALL NOT SUBMIT A PPQ WHEN A COMPLETED CPARS IS AVAILABLE BUT MAY SUBMIT A PPQ IN ADDITION TO A COMPLETED CPARS.**

Offerors are highly encouraged to provide any information on problems encountered and the corrective actions taken on projects submitted under Factor 2 - Experience. Offerors are also highly encouraged to address any adverse past performance issues. Such explanations shall not exceed four (4) pages in total. Information beyond this page limitation will not be considered.

Performance award or additional information submitted will not be considered.

Sources of Past Performance Information for evaluation for the offeror and the Designer of Record will be considered. Sources that may be used are as follows:

- Past performance information provided by the offeror, as solicited;
- Past performance information obtained from questionnaires tailored to the circumstances of the acquisition; and
- Past performance information obtained from any other sources available to the Government, to include, but not limited to, Contractor Performance Assessment Reporting System (CPARS), Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), or other databases; the Defense Contract Management Agency; and interviews with Program Managers, Contracting Officers, and Fee Determining Officials.

While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete past performance information rests with the Offeror.

***A copy of the blank Past Performance Questionnaire to be used for requesting client references is included as Attachment D.***

The Government reserves the right to contact references for verification or additional information. The Government's inability to contact any of the Offeror's references or the references' unwillingness to provide the information requested may affect the Government's evaluation of this factor.

(ii) Basis of Evaluation:

This evaluation focuses on how well the Offeror and the proposed Designer of Record performed on the relevant projects submitted under Factor 2 - Experience and may also consider past performance on other relevant projects currently documented in known sources.

The Government will consider the recency and relevance of the information, the source of the information, context of the data, and general trends in Contractor's performance. In the case of Offerors for which there is no information on past performance, or where past performance information is not available or so sparse that no meaningful assessment can be performed, the Offeror may not be evaluated favorably or unfavorably and will instead receive a "Neutral" rating (See FAR 15.305(a)(2)(iv)). The Government may determine that a "Substantial Confidence" or "Satisfactory Confidence" past performance rating is worth more than a "Neutral Confidence" past performance rating in a best value tradeoff as long as the determination is consistent with stated selection criteria.

The Government will consider the degree to which past performance evaluations and all other past performance information reviewed by the Government (e.g., CPARS, Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), performance recognition documents, and information obtained from any other source) reflect a trend of satisfactory performance considering:

- A pattern of successful completion of tasks;
- A pattern of deliverables that are timely and of good quality;
- pattern of cooperativeness and teamwork with the Government at all levels (task managers, contracting officers, auditors, etc.); and
- Recency of tasks performed that are identical to, similar to, or related to the task at hand.

## **Factor 5, Technical Solution:**

(i) Solicitation Submittal Requirements:

Provide conceptual drawings, narrative, and project schedule demonstrating the technical solution to the project that meets the requirements of the RFP.

**Conceptual Drawings:** Provide up to fifteen (15) conceptual drawings/sheets to include, but not limited to:

- Site Plan including primary facilities, roadways, parking, emergency vehicle access, and standoff distances.
- Floor Plan including interior circulation, adjacencies, square footage and mechanical spaces.

- Exterior facade of the facilities

Narrative: Provide a narrative not to exceed eight (8) pages that at a minimum addresses the following:

(1) Design Methodology

- a. Architectural elements
- b. Building structure elements
- c. Building envelope
- d. Mechanical Systems and DDC Controls to include accessibility to Mechanical room and circulation within the mechanical system.
- e. Electrical and Communication Systems infrastructure.
- f. Resiliency to include cyber secure EMCS integration, utility metering and controls
- g. Anti-terrorism/force protection features
- h. General concept proposed to meet sustainability and low impact development (LID).
- i. Site layout to include building orientation, roadways, parking (include ingress and egress), emergency vehicle access, and standoff distances.

(2) Construction Methodology

- a. State the primary construction method proposed (e.g. site-built, modular, pre-fabricated, industrialized construction, or a hybrid)
- b. Provide a detail description on how the selected method will address each building component's construction (e.g. CMU, insulated concrete forms panelized wall systems, precast elements, bathroom pods, MEP racks, full volumetric modules) or constructed using alternative on-site techniques.
- c. Provide a detailed description on the logistical approach and how this approach mitigates challenges relating to construction on an active military base

(3) Management Team

- a. Provide a detailed description on the management of the multiple and concurrent construction sites included in this RFP.
- b. Provide a detailed description on the plan for securing, managing, and maintaining subcontracted labor for this RFP.
- c. Provide a chart and accompanying narrative to demonstrate the management hierarchy (by position) of the entire project to include both the design and construction teams. This narrative shall include authorities; roles; responsibilities; and a brief synopsis of the names, education, training and experience of key individuals based on the proposed management structure. (Note: Key individuals may vary among offerors based on the proposed management structure.)

Project Schedule: Provide a detailed project schedule, documenting any multiple critical paths, in 11" x 17" pages and in an Adobe PDF file. There is no page limit on the schedule. The schedule shall include a high-level schedule with major milestones, for both design and construction on the critical path. The project schedule shall illustrate the offeror's ability to achieve or improve on the contract completion date set out in the RFP (1825 calendar days inclusive of base bid work as well as all options, including 15 days for bond approval). Identify the overall completion time for this project, as well as interim completion times (including each sequence of work as identified in the RFP) and key milestones for sequences as required to complete construction. For evaluation purposes, the offerors schedule should use an estimated contract award date of 30 September 2026. The schedule shall demonstrate an understanding of the work, a logical sequence of events to accomplish the work, and contain enough information to identify all of the major milestones, as defined in the RFP.

Failure to include the above information in the schedule may result in the schedule and, therefore, this factor being found UNACCEPTABLE. An UNACCEPTABLE rating results in the offeror being ineligible for award.

(ii) Basis of Evaluation:

The Government will evaluate the conceptual drawings, narrative, and project schedule considering the extent to which the Offeror demonstrates a clear understanding of the RFP inclusive of the project's architectural, engineering, logistical, and energy requirements. The evaluation will focus on how the Offeror's proposed technical solution, including the chosen construction methodology, effectively and innovatively adheres to the technical and performance requirements of the RFP.

The evaluation will be based on the following components:

**Conceptual Drawings:** The Government will assess the clarity of conceptual drawings in conveying a functional, compliant design with logical circulation and appropriate adjacencies is critical.

**Narrative:**

1. **Design Methodology:** The Government will assess the coherence and innovation of the proposed design. The evaluation will focus on the complete integration of all required elements--from architectural and structural to resiliency and site layout.
2. **Construction Methodology:** The proposed construction approach will be evaluated for its soundness and efficiency. Offerors must provide a strong justification for their chosen method (e.g., site-built, modular, hybrid). The evaluation will scrutinize the feasibility of the construction plan and the thoroughness of the logistical strategy, particularly how it identifies and mitigates the unique challenges of building on an active military installation.
3. **Management Team:** The Offeror's management plan will be assessed to determine the team's capability to execute the project successfully. The evaluation will consider the clarity and effectiveness of the management hierarchy, the definition of roles and responsibilities, and the viability of the subcontractor management plan. Most importantly, the qualifications and experience of key personnel must align with their proposed roles to instill confidence in their ability to lead the project.
4. **Project Schedule:** The project schedule will be evaluated for its realism, logic, and ability to meet the contract completion date. The schedule must present a logical sequence of work and include all major design and construction milestones. An overly aggressive schedule without a supporting, well-reasoned methodology may be viewed as a risk. The evaluation will focus on whether the schedule is achievable and demonstrates a clear path to successful and timely completion.

A schedule that proposes a realistic and feasible contract duration that is shorter than the required duration indicated in the RFP may be considered more favorably.

**Factor 6, Small Business Utilization and Participation:**

It is the policy of the Government to provide maximum practicable opportunities in its acquisitions to Small Business (SB) concerns, including Small Disadvantaged Business (SDB), Woman-Owned Small Business (WOSB), Historically Underutilized Business Zone Small Business (HUBZone SB), Veteran-Owned Small Business (VOSB), Service-Disabled Veteran-Owned Small Business (SDVOSB), and other small business concerns. Further, it is the policy of the Government that such concerns will have the maximum practicable opportunity to participate in contract performance consistent with its efficient performance.

This Factor assesses both the historical achievements in utilizing small business concerns and the proposed small business participation commitment for this requirement. The offeror is required to demonstrate its previous commitment to SBs through its record of past utilization of SBs and the level of commitment to small business if awarded a contract under this solicitation.

(i) Solicitation Submittal Requirements:

**1. All** Offerors (large, non-profits, **AND** small businesses) shall use **Attachment E** (Historical Small Business Utilization) to demonstrate their historical utilization of SBs. Each project submitted under **Factor 2, Experience**, shall be included on **Attachment E**. Failure to include each project submitted under **Factor 2, Experience**, on **Attachment E**, or the failure to fully complete **Attachment E** for each project may result in a Deficiency. Only complete **Attachment E**. Information provided in a different format and/or on a form created by the offeror will not be evaluated. Attachments or

addendums to **Attachment E** will not be evaluated. Offerors are permitted to expand portions of the form, as needed, to provide sufficient response. Instructions regarding how to complete **Attachment E** are included at the beginning of the attachment.

**2. All** Offerors (large, non-profits, **AND** small businesses) shall use **Attachment F** (Small Business Participation Commitment Document (SBPCD)) to submit the following required information for evaluation of this factor:

- To demonstrate commitment to use small business concerns in the performance of this contract, identify by name the subcontractors that will be used to support each small business category, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSBs. Identify the type and complexity of product/service to be subcontracted, and the type of commitment (i.e., teaming agreement, joint venture agreement, mentor protegee agreement, letter of commitment, etc.) with each subcontractor.
  - If subcontractors are not identified by name, offerors shall provide a detailed explanation why subcontractors are not identified. If firm written commitments with SBs are not in place, offerors shall provide an explanation and rationale on the ability to achieve the proposed participation. (See **Attachment F**, paragraph 5)
  - If a LB offeror does not intend to subcontract, provide a **detailed explanation** why subcontracting would not result in efficient contract performance. SBs intending to 100% self-perform are not required to provide an explanation. (See **Attachment F**, paragraph 6)
- To demonstrate maximum practicable participation of small businesses, identify (**in terms of dollar value and percentage of the total contract value**) the offeror's proposed small business participation. The minimum required small business participation (i.e. work to be performed by small business as the prime contractor and/or work to be performed by small business subcontractors) is **20%**. Offerors who are not able to meet the minimum total small business participation requirement of **20%** (of the total contract value) shall provide a detailed explanation why the minimum total small business participation requirement cannot be achieved.
- Only complete **Attachment F**. Information provided in a different format and/or on a form created by the offeror will not be evaluated. Attachments or addendums to **Attachment F** will not be evaluated.
- Large business offerors may achieve the minimum total small business participation requirement through subcontracting to small businesses.
- Small business offerors may achieve the minimum total small business participation requirement through their own performance/participation as a prime as well as through a joint venture, teaming arrangement, and/or subcontracting with other small business concerns.

(ii) Basis of Evaluation:

The Government will evaluate the likelihood of success in achieving the small business objectives of this acquisition based on the following:

1. The extent to which the offeror is able to demonstrate a history of supporting Government policies concerning the utilization of small business concerns, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB and the success in achieving goals established by subcontracting plans on prior contracts. For projects submitted for **Factor 2, Experience**, that did not have established small business goals, consideration will be given to the utilization of the small business concerns and the degree of usage of small business relative to the total contract value. Historical Small Business Utilization will only be evaluated if performed by the offeror.
2. The extent to which the offeror has demonstrated an achievable commitment to use small businesses, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB in the performance of this contract within the SBPCD.
  - The minimum small business participation requirement, through work performed by the small business prime and/or subcontracting with small businesses, shall meet or exceed **20%** of the total contract value, unless the offeror provides a reasonable and well-documented explanation for why the minimum **20%** small business participation requirement cannot be achieved.

- Offerors that demonstrate a commitment to providing maximum practical opportunity to small businesses may be rated higher.
- Proposing less than **20%** total small business participation requirement may result in a Deficiency.
- Offerors that do not demonstrate commitment to providing maximum practical opportunity to small businesses may result in a Deficiency.

- The SBPCD will be evaluated to determine the extent to which small business concerns are specifically identified by name and socioeconomic category in the document and the degree to which small business concerns, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB will participate relative to the total contract value. The complexity and variety of the work small business concerns will perform and the degree of commitment to use named sources through formal teaming agreements, joint venture agreements, mentor protegee agreements, written/signed letters of /commitment, etc. will be evaluated to assess achievability of the commitment.

- The offeror may receive a Deficiency if firm commitments with subcontractors are not provided and the offeror fails to provide a detailed explanation for how the proposed small business participation requirement will be achieved.
- The offeror may be rated lower, if they fail to provide a detailed explanation for why subcontracting would not result in efficient contract performance. (Not applicable to SBs intending to 100% self-perform or LBs and non-profits who intend to subcontract.)

## 4. PROPOSAL REQUIREMENTS

### 4.1 SITE VISIT

The Site Visit will be conducted during Phase II and information will be provided via Amendment.

### 4.2 PROPOSAL SUBMISSION INSTRUCTIONS:

In response to this request for proposal, the complete proposal shall include both the Price Proposal and the Non-Price Factors Proposal, submitted in accordance with the above Basis of Evaluation and Submittal Requirements for each Factor as follows:

Offerors shall only submit electronic proposals (.pdf format) in response to this solicitation by the proposal due date. Only the PIEE Solicitation Module is authorized for the submission of electronic proposals in response to this solicitation. Electronic proposal submissions should be no larger than 1.9 GB per file. Offerors shall ensure that the Government has received the electronic proposal prior to the date and time specified. PIEE Solicitation Vendor Access Instructions are provided via Attachment B. Emailed submissions will not be accepted.

Offerors shall allow adequate time to upload files which may be slower for non-DoD users and to avoid other technical difficulties that may be encountered. Offerors are also responsible for submitting files in the format specified and consistent with requirements stated elsewhere in this solicitation. Files that cannot be opened or are otherwise missing the required content are the responsibility of the Offeror.

The PIEE system will record the date and time of package submittal. The date and time of package submittal recorded in PIEE shall govern the timeliness of any proposal submission.

**PROPOSALS SUBMITTED IN RESPONSE TO THIS REQUEST FOR PROPOSAL MUST BE RECEIVED NO LATER THAN THE DATE AND TIME SPECIFIED IN BLOCK 13A OF THE SF1442. Proposals not received by the date and time specified shall be treated in accordance with FAR 52.215-1 "Instructions to Offerors - Competitive Acquisitions" and may be rejected.**

Price information contained in the technical proposal will not be considered. Likewise, technical information contained in the price proposal will not be considered.

It is the sole responsibility of the Offeror to obtain the RFP files, along with any amendments, from Opportunities (www.sam.gov).

### 4.3 PRE-PROPOSAL INQUIRIES (PPIs):

All inquiries must be submitted in writing and received by the Contract Specialist by the date specified herein in order to permit adequate time to reply to the inquiry. There is no guarantee that PPI's submitted after the cut-off date will be answered before the solicitation closes. Submit all questions to Mary Ann Pool at mary.a.pool3.civ@us.navy.mil with the e-mail subject line "N4008526R0058 PPI {Company Name}." Use of the PPI Log template is required. Do not submit the same inquiry more than once. Please verify that inquiries submitted by you on behalf of your subcontractors are not duplicates. A response will be published via Amendment to SAM.gov. The PPI Log Template (Attachment A) can be found on Contract Opportunities under the Attachments section. PPI Questions shall be submitted no later than fourteen (14) calendar days prior to the proposal due date.

#### 4.4 CONTRACT OPPORTUNITIES:

Amendments will be posted directly to PIEE and Contract Opportunities/Sam.gov. The DB RFP will be posted on PIEE /Sam.gov under the Attachments section of this RFP. Additionally, other postings will be made to PIEE/Sam.gov, such as the pre-proposal inquiries (PPI) log, revised RFP documents, etc., under the Attachments section of the RFP. It is recommended contractors check PIEE/Sam.gov and the Attachments section of the RFP periodically to see if additional postings have been made. It is the contractor's responsibility to check PIEE/Sam.gov for all postings.

#### 5. INCORPORATION OF TECHNICAL PROPOSAL

The Contractor's technical proposal, including revisions and amendments, made prior to contract award and a copy of which is in the possession of both parties, will be incorporated into this contract upon award by reference with the same force and effect as if set forth in full text. All contractor personnel shall meet or exceed the qualification standards, experience levels and trade background set forth in the technical proposal.

In the event of an inconsistency between the provisions of this contract and the technical proposal, the inconsistency shall be resolved by giving precedence in the following order: (i) the contract (excluding the technical proposal), and then (ii) the technical proposal.

#### 6. ATTACHMENTS: MAY BE LOCATED ON CONTRACT OPPORTUNITIES AND PIEE UNDER ATTACHMENTS

Attachment A - Pre-Proposal Inquiry Log Template

Attachment B - PIEE Vendor Access Instructions

Attachment C - Construction and Design Experience Project Data Sheet

Attachment D - Past Performance Questionnaire

Attachment E - Historical Small Business Utilization (*provided with Phase II*)

Attachment F - Small Business Participation Commitment Document (*provided with Phase II*)

Attachment G - Individual Small Business Subcontracting Plan (*provided with Phase II*)

Attachment H - DB RFP Package (*provided with Phase II*)

Attachment I - Price Proposal Form (*provided with Phase II*)

#### FAR Clauses Incorporated by Reference

| Number    | Title                                                         | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|---------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.214-34 | Submission of Offers in the English Language.                 | Apr 1991       |                      |                          |
| 52.214-35 | Submission of Offers in U.S. Currency.                        | Apr 1991       |                      |                          |
| 52.215-1  | Instructions to Offerors-Competitive Acquisition. (Deviation) | Feb 2026       |                      |                          |
| 52.233-2  | Service of Protest. (Deviation)                               | Feb 2026       |                      |                          |

#### FAR Clauses Incorporated by Full Text

**52.211-14 Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use. (Apr 2008)**

Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use (Apr 2008)

Any contract awarded as a result of this solicitation will be [ ] DX rated order; [x] DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation. [*Contracting Officer check appropriate box.*]

(End of provision)

**52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)**

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://acquisition.gov>

<https://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of provision)

**52.252-5 Authorized Deviations in Provisions. (Nov 2020)**

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any **FAR and DFARS (48 CFR Chapter 1 and 2)** provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

**Section 00 45 00 - Representations and Certifications****DFARS Clauses Incorporated by Reference**

| <b>Number</b> | <b>Title</b>                                                                                   | <b>Effective Date</b> | <b>Alternate/ Deviation</b> | <b>Variation Effective Date</b> |
|---------------|------------------------------------------------------------------------------------------------|-----------------------|-----------------------------|---------------------------------|
| 252.203-7005  | Representation Relating to Compensation of Former DoD Officials.                               | Sep 2022              |                             |                                 |
| 252.204-7008  | Compliance with Safeguarding Covered Defense Information Controls.                             | Oct 2016              |                             |                                 |
| 252.225-7055  | Representation Regarding Business Operations with the Maduro Regime.                           | May 2022              |                             |                                 |
| 252.225-7057  | Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.   | Aug 2022              |                             |                                 |
| 252.225-7059  | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation. | Jun 2023              |                             |                                 |

**FAR Clauses Incorporated by Full Text****52.209-7 Information Regarding Responsibility Matters. (Deviation) (Feb 2026)****INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION)**

(a) *Definitions.* As used in this provision-

*Administrative proceeding* means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

*Federal contracts and grants with total value greater than \$10,000,000* means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

*Principal* means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

- (A) The payment of a monetary fine or penalty of \$5,000 or more; or
- (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

**52.209-13 Violation of Arms Control Treaties or Agreements-Certification. (Deviation)**

**(Feb 2026)**

**VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (FEB 2026) (DEVIATION)**

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification. [Offeror shall check either (1) or (2).]*

☐ (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to [NDAA1290Cert@state.gov](mailto:NDAA1290Cert@state.gov). To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

**52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.**

**(Jun 2020)**

**TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)**

(a) *Definitions.* As used in this provision-

*Foreign person* means any person other than a United States person.

*Specified Federal procurement payment* means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

*United States person* as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-
  - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
  - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at [www.irs.gov/w14](http://www.irs.gov/w14). Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

- (1) It ☐ is ☐ is not a foreign person; and
- (2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

- (1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and
- (2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

**DFARS Clauses Incorporated by Full Text****252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)****PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)**

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

**Section 00 70 00 - Conditions of the Contract****Overall Contract Delivery Period**

From date of lead time event to beginning of performance

15 Calendar Days

Date of Award Receipt

From date of lead time event to completion of performance

1461 Calendar Days

Date of Award Receipt

**FAR Clauses Incorporated by Reference**

| <b>Number</b> | <b>Title</b>                                                                                                                                                | <b>Effective Date</b> | <b>Alternate/<br/>Deviation</b> | <b>Variation<br/>Effective<br/>Date</b> |
|---------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------|---------------------------------|-----------------------------------------|
| 52.203-3      | Gratuities.                                                                                                                                                 | Apr 1984              |                                 |                                         |
| 52.203-5      | Covenant Against Contingent Fees.                                                                                                                           | May 2014              |                                 |                                         |
| 52.203-6      | Restrictions on Subcontractor Sales to the Government.                                                                                                      | Jun 2020              |                                 |                                         |
| 52.203-7      | Anti-Kickback Procedures.                                                                                                                                   | Jun 2020              |                                 |                                         |
| 52.203-8      | Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.                                                                           | May 2014              |                                 |                                         |
| 52.203-10     | Price or Fee Adjustment for Illegal or Improper Activity.                                                                                                   | May 2014              |                                 |                                         |
| 52.203-12     | Limitation on Payments to Influence Certain Federal Transactions.                                                                                           | Jun 2020              |                                 |                                         |
| 52.203-13     | Contractor Code of Business Ethics and Conduct.                                                                                                             | Nov 2021              |                                 |                                         |
| 52.203-19     | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.                                                                         | Jan 2017              |                                 |                                         |
| 52.204-7      | System for Award Management-Registration. (Deviation)                                                                                                       | Feb 2026              |                                 |                                         |
| 52.204-9      | Personal Identity Verification of Contractor Personnel.                                                                                                     | Jan 2011              |                                 |                                         |
| 52.204-10     | Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation)                                                                             | Feb 2026              |                                 |                                         |
| 52.204-13     | System for Award Management-Maintenance. (Deviation)                                                                                                        | Feb 2026              |                                 |                                         |
| 52.204-19     | Incorporation by Reference of Representations and Certifications.                                                                                           | Dec 2014              |                                 |                                         |
| 52.204-91     | Contractor Identification. (Deviation)                                                                                                                      | Feb 2026              |                                 |                                         |
| 52.209-6      | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation) | Feb 2026              |                                 |                                         |
| 52.209-9      | Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation)                                                                     | Feb 2026              |                                 |                                         |
| 52.209-10     | Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)                                                                                 | Feb 2026              |                                 |                                         |
| 52.210-1      | Market Research. (Deviation)                                                                                                                                | Feb 2026              |                                 |                                         |
| 52.211-15     | Defense Priority and Allocation Requirements.                                                                                                               | Apr 2008              |                                 |                                         |
| 52.215-1      | Instructions to Offerors-Competitive Acquisition. (Deviation) (Alternate I)                                                                                 | Feb 2026              | Alternate I                     | Feb 2026                                |
| 52.215-2      | Audit and Records-Negotiation. (Deviation)                                                                                                                  | Feb 2026              |                                 |                                         |
| 52.215-8      | Order of Precedence-Uniform Contract Format. (Deviation)                                                                                                    | Feb 2026              |                                 |                                         |
| 52.215-13     | Subcontractor Certified Cost or Pricing Data -- Modifications (Deviation 2022-00001)                                                                        | Feb 2026              | Deviation 2022-00001            | Oct 2021                                |
| 52.217-2      | Cancellation Under Multi-year Contracts.                                                                                                                    | Oct 1997              |                                 |                                         |
| 52.217-4      | Evaluation of Options Exercised at Time of Contract Award. (Deviation)                                                                                      | Feb 2026              |                                 |                                         |
| 52.219-8      | Utilization of Small Business Concerns. (Deviation)                                                                                                         | Feb 2026              |                                 |                                         |
| 52.219-9      | Small Business Subcontracting Plan. (Deviation)                                                                                                             | Feb 2026              |                                 |                                         |
| 52.219-16     | Liquidated Damages-Subcontracting Plan. (Deviation)                                                                                                         | Feb 2026              |                                 |                                         |
| 52.222-3      | Convict Labor. (Deviation)                                                                                                                                  | Feb 2026              |                                 |                                         |
| 52.222-5      | Construction Wage Rate Requirements-Secondary Site of the Work. (Deviation)                                                                                 | Feb 2026              |                                 |                                         |
| 52.222-6      | Construction Wage Rate Requirements. (Deviation)                                                                                                            | Feb 2026              |                                 |                                         |
| 52.222-7      | Withholding of Funds. (Deviation)                                                                                                                           | Feb 2026              |                                 |                                         |
| 52.222-8      | Payrolls and Basic Records. (Deviation)                                                                                                                     | Feb 2026              |                                 |                                         |
| 52.222-9      | Apprentices and Trainees. (Deviation)                                                                                                                       | Feb 2026              |                                 |                                         |
| 52.222-10     | Compliance with Copeland Act Requirements. (Deviation)                                                                                                      | Feb 2026              |                                 |                                         |
| 52.222-11     | Subcontracts (Labor Standards). (Deviation)                                                                                                                 | Feb 2026              |                                 |                                         |
| 52.222-12     | Contract Termination-Debarment.                                                                                                                             | May 2014              |                                 |                                         |
| 52.222-13     | Compliance with Construction Wage Rate Requirements and Related Regulations.                                                                                | May 2014              |                                 |                                         |

|           |                                                                                                    |          |                      |          |
|-----------|----------------------------------------------------------------------------------------------------|----------|----------------------|----------|
| 52.222-14 | Disputes Concerning Labor Standards. (Deviation)                                                   | Feb 2026 |                      |          |
| 52.222-15 | Certification of Eligibility.                                                                      | May 2014 |                      |          |
| 52.222-32 | Construction Wage Rate Requirements-Price Adjustment (Actual Method). (Deviation)                  | Feb 2026 |                      |          |
| 52.222-35 | Equal Opportunity for Veterans. (Deviation)                                                        | Feb 2026 |                      |          |
| 52.222-36 | Equal Opportunity for Workers with Disabilities. (Deviation)                                       | Feb 2026 |                      |          |
| 52.222-37 | Employment Reports on Veterans. (Deviation)                                                        | Feb 2026 |                      |          |
| 52.222-40 | Notification of Employee Rights Under the National Labor Relations Act. (Deviation)                | Feb 2026 |                      |          |
| 52.222-50 | Combating Trafficking in Persons. (Deviation)                                                      | Feb 2026 |                      |          |
| 52.222-54 | Employment Eligibility Verification. (Deviation)                                                   | Feb 2026 |                      |          |
| 52.222-55 | Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation)                      | Feb 2026 |                      |          |
| 52.222-62 | Paid Sick Leave Under Executive Order 13706. (Deviation)                                           | Feb 2026 |                      |          |
| 52.223-5  | Pollution Prevention and Right-to-Know Information.                                                | May 2024 |                      |          |
| 52.223-10 | Waste Reduction Program. (DEVIATION 2025-O0004)                                                    | Mar 2025 | Deviation 2025-O0004 | Mar 2025 |
| 52.223-23 | Sustainable Products and Services. (DEVIATION 2025-O0004)                                          | Feb 2026 | Deviation 2025-O0004 | Mar 2025 |
| 52.224-3  | Privacy Training.                                                                                  | Jan 2017 |                      |          |
| 52.225-12 | Notice of Buy American Requirement-Construction Materials Under Trade Agreements.                  | May 2014 |                      |          |
| 52.225-12 | Notice of Buy American Requirement-Construction Materials Under Trade Agreements. (Alternate I)    | May 2014 | Alternate I          | May 2014 |
| 52.226-7  | Drug-Free Workplace.                                                                               | May 2024 |                      |          |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving.                               | May 2024 |                      |          |
| 52.227-13 | Patent Rights-Ownership by the Government.                                                         | Dec 2007 |                      |          |
| 52.228-2  | Additional Bond Security.                                                                          | Oct 1997 |                      |          |
| 52.228-5  | Insurance-Work on a Government Installation.                                                       | Jan 1997 |                      |          |
| 52.228-11 | Individual Surety-Pledge of Assets.                                                                | Feb 2021 |                      |          |
| 52.228-12 | Prospective Subcontractor Requests for Bonds.                                                      | Dec 2022 |                      |          |
| 52.228-14 | Irrevocable Letter of Credit.                                                                      | Nov 2014 |                      |          |
| 52.228-15 | Performance and Payment Bonds-Construction.                                                        | Jun 2020 |                      |          |
| 52.228-17 | Individual Surety-Pledge of Assets (Bid Guarantee).                                                | Feb 2021 |                      |          |
| 52.229-3  | Federal, State, and Local Taxes.                                                                   | Feb 2013 |                      |          |
| 52.229-12 | Tax on Certain Foreign Procurements.                                                               | Feb 2021 |                      |          |
| 52.232-8  | Discounts for Prompt Payment.                                                                      | Feb 2002 |                      |          |
| 52.232-17 | Interest.                                                                                          | May 2014 |                      |          |
| 52.232-24 | Prohibition of Assignment of Claims.                                                               | May 2014 |                      |          |
| 52.232-27 | Prompt Payment for Construction Contracts.                                                         | Jan 2017 |                      |          |
| 52.232-33 | Payment by Electronic Funds Transfer-System for Award Management.                                  | Oct 2018 |                      |          |
| 52.232-39 | Unenforceability of Unauthorized Obligations.                                                      | Jun 2013 |                      |          |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors.                                   | Mar 2023 |                      |          |
| 52.233-1  | Disputes. (Deviation)                                                                              | Feb 2026 |                      |          |
| 52.233-1  | Disputes. (Deviation) (Alternate I)                                                                | Feb 2026 | Alternate I          | Feb 2026 |
| 52.233-3  | Protest after Award. (Deviation)                                                                   | Feb 2026 |                      |          |
| 52.233-4  | Applicable Law for Breach of Contract Claim. (Deviation)                                           | Feb 2026 |                      |          |
| 52.236-2  | Differing Site Conditions. (Deviation)                                                             | Feb 2026 |                      |          |
| 52.236-3  | Site Investigation and Conditions Affecting the Work. (Deviation)                                  | Feb 2026 |                      |          |
| 52.236-5  | Material and Workmanship. (Deviation)                                                              | Feb 2026 |                      |          |
| 52.236-6  | Superintendence by the Contractor. (Deviation)                                                     | Feb 2026 |                      |          |
| 52.236-7  | Permits and Responsibilities. (Deviation)                                                          | Feb 2026 |                      |          |
| 52.236-8  | Other Contracts. (Deviation)                                                                       | Feb 2026 |                      |          |
| 52.236-9  | Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements. (Deviation) | Feb 2026 |                      |          |
| 52.236-10 | Operations and Storage Areas. (Deviation)                                                          | Feb 2026 |                      |          |
| 52.236-11 | Use and Possession Prior to Completion. (Deviation)                                                | Feb 2026 |                      |          |
| 52.236-12 | Cleaning Up. (Deviation)                                                                           | Feb 2026 |                      |          |
| 52.236-13 | Accident Prevention. (Deviation)                                                                   | Feb 2026 |                      |          |
| 52.236-13 | Accident Prevention. (Alternate I)                                                                 | Feb 2026 | Alternate I          | Nov 1991 |
| 52.236-15 | Schedules for Construction Contracts. (Deviation)                                                  | Feb 2026 |                      |          |
| 52.236-17 | Layout of Work. (Deviation)                                                                        | Feb 2026 |                      |          |
| 52.236-21 | Specifications and Drawings for Construction. (Deviation)                                          | Feb 2026 |                      |          |
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications. (Deviation)               | Feb 2026 |                      |          |
| 52.240-91 | Security Prohibitions and Exclusions. (Deviation)                                                  | Feb 2026 |                      |          |
| 52.242-5  | Payments to Small Business Subcontractors.                                                         | Jan 2017 |                      |          |
| 52.242-13 | Bankruptcy.                                                                                        | Jul 1995 |                      |          |
| 52.242-14 | Suspension of Work.                                                                                | Apr 1984 |                      |          |
| 52.243-4  | Changes. (Deviation)                                                                               | Feb 2026 |                      |          |
| 52.244-6  | Subcontracts for Commercial Products and Commercial Services. (Deviation)                          | Feb 2026 |                      |          |
| 52.244-6  | Subcontracts for Commercial Products and Commercial Services. (DEVIATION 2025-O0003)               | Feb 2026 | Deviation 2025-O0003 | Mar 2025 |
| 52.246-2  | Inspection of Supplies-Fixed-Price.                                                                | Aug 1996 |                      |          |

|           |                                                                            |          |             |          |
|-----------|----------------------------------------------------------------------------|----------|-------------|----------|
| 52.246-12 | Inspection of Construction.                                                | Aug 1996 |             |          |
| 52.246-16 | Responsibility for Supplies.                                               | Apr 1984 |             |          |
| 52.246-21 | Warranty of Construction.                                                  | Mar 1994 |             |          |
| 52.247-34 | F.o.b. Destination.                                                        | Jan 1991 |             |          |
| 52.248-3  | Value Engineering-Construction. (Alternate I)                              | Oct 2025 | Alternate I | Apr 1984 |
| 52.249-2  | Termination for Convenience of the Government (Fixed-Price).               | Apr 2012 |             |          |
| 52.249-2  | Termination for Convenience of the Government (Fixed-Price). (Alternate I) | Apr 2012 | Alternate I | Sep 1996 |
| 52.249-10 | Default (Fixed-Price Construction).                                        | Apr 1984 |             |          |
| 52.253-1  | Computer Generated Forms. (Deviation)                                      | Feb 2026 |             |          |

**DFARS Clauses Incorporated by Reference**

| Number       | Title                                                                                                                                                | Effective Date | Alternate/<br>Deviation | Variation<br>Effective Date |
|--------------|------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------------|-----------------------------|
| 252.201-7000 | Contracting Officer's Representative.                                                                                                                | Dec 1991       |                         |                             |
| 252.203-7000 | Requirements Relating to Compensation of Former DoD Officials.                                                                                       | Sep 2011       |                         |                             |
| 252.203-7001 | Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.                                                                | Jan 2023       |                         |                             |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights.                                                                                             | Dec 2022       |                         |                             |
| 252.203-7003 | Agency Office of the Inspector General.                                                                                                              | Aug 2019       |                         |                             |
| 252.203-7004 | Display of Hotline Posters.                                                                                                                          | Jan 2023       |                         |                             |
| 252.204-7003 | Control of Government Personnel Work Product.                                                                                                        | Apr 1992       |                         |                             |
| 252.204-7004 | Antiterrorism Awareness Training for Contractors.                                                                                                    | Jan 2023       |                         |                             |
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)                                             | May 2024       | Deviation 2024-O0013    | May 2024                    |
| 252.204-7018 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.                                                          | Jan 2023       |                         |                             |
| 252.204-7019 | Notice of NIST SP 800-171 DoD Assessment Requirements.                                                                                               | Nov 2023       |                         |                             |
| 252.204-7020 | NIST SP 800-171 DoD Assessment Requirements.                                                                                                         | Nov 2023       |                         |                             |
| 252.204-7024 | Notice on the Use of the Supplier Performance Risk System.                                                                                           | Mar 2023       |                         |                             |
| 252.205-7000 | Provision of Information to Cooperative Agreement Holders.                                                                                           | Oct 2024       |                         |                             |
| 252.209-7004 | Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.                          | May 2019       |                         |                             |
| 252.215-7013 | Supplies and Services Provided by Nontraditional Defense Contractors.                                                                                | Jan 2023       |                         |                             |
| 252.215-7016 | Notification to Offerors-Postaward Debriefings.                                                                                                      | Oct 2025       |                         |                             |
| 252.219-7003 | Small Business Subcontracting Plan (DoD Contracts).                                                                                                  | Dec 2019       |                         |                             |
| 252.222-7006 | Restrictions on the Use of Mandatory Arbitration Agreements.                                                                                         | Jan 2023       |                         |                             |
| 252.223-7006 | Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.                                                                     | Sep 2014       |                         |                             |
| 252.223-7008 | Prohibition of Hexavalent Chromium.                                                                                                                  | Jan 2023       |                         |                             |
| 252.223-7997 | Prohibition on Procurement of Certain Items Containing Perfluorooctane Sulfonate or Perfluorooctanoic Acid -- Representation. (Deviation 2022-O0010) | Sep 2022       | Deviation 2022-O0010    | Sep 2022                    |
| 252.223-7998 | Prohibition on Procurement of Certain Items Containing Perfluorooctane Sulfonate or Perfluorooctanoic Acid. (Deviation 2022-O0010)                   | Apr 2023       | Deviation 2022-O0010    | Apr 2023                    |
| 252.225-7012 | Preference for Certain Domestic Commodities.                                                                                                         | Apr 2022       |                         |                             |
| 252.225-7048 | Export-Controlled Items.                                                                                                                             | Jun 2013       |                         |                             |
| 252.225-7056 | Prohibition Regarding Business Operations with the Maduro Regime.                                                                                    | Jan 2023       |                         |                             |
| 252.225-7058 | Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.                                                        | Jan 2023       |                         |                             |
| 252.225-7060 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.                                                                      | Jun 2023       |                         |                             |
| 252.225-7967 | Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)                                                     | Feb 2024       | Deviation 2024-O0006    | Feb 2024                    |
| 252.225-7972 | Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)                                                     | Aug 2024       | Deviation 2024-O0014    | Aug 2024                    |
| 252.225-7973 | Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)                                      | Aug 2024       | Deviation 2024-O0014    | Aug 2024                    |
| 252.226-7001 | Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.                                 | Jan 2023       |                         |                             |
| 252.226-7003 | Drug-Free Work Force.                                                                                                                                | Aug 2024       |                         |                             |
| 252.232-7003 | Electronic Submission of Payment Requests and Receiving Reports.                                                                                     | Dec 2018       |                         |                             |
| 252.232-7010 | Levies on Contract Payments.                                                                                                                         | Dec 2006       |                         |                             |
| 252.236-7000 | Modification Proposals--Price Breakdown.                                                                                                             | Dec 1991       |                         |                             |
| 252.236-7008 | Contract Prices--Bidding Schedules.                                                                                                                  | Dec 1991       |                         |                             |
| 252.243-7001 | Pricing of Contract Modifications.                                                                                                                   | Dec 1991       |                         |                             |
| 252.243-7002 | Requests for Equitable Adjustment.                                                                                                                   | Dec 2022       |                         |                             |
| 252.244-7000 | Subcontracts for Commercial Products or Commercial Services.                                                                                         | Nov 2023       |                         |                             |
| 252.247-7023 | Transportation of Supplies by Sea.                                                                                                                   | Oct 2024       |                         |                             |

**FAR Clauses Incorporated by Full Text**

**52.204-8 Annual Representations and Certifications. (DEVIATION 2025-O0003 (Mar 2025) Deviation 2025-O0004 (Mar 2025) and 2025-O0004)**

Annual Representations and Certifications (MAR 2025)(DEVIATION 2025-O0003 and 2025-O0004)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is **236220**.

(2) The small business size standard is **\$45,000,000**.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) [Reserved]

(xv) [Reserved]

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[ ] (i) 52.204-17, Ownership or Control of Offeror.

[ ] (ii) 52.204-20, Predecessor of Offeror.

[ ] (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

[ ] (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

[ ] (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

[ ] (vi) 52.227-6, Royalty Information.

[ ] (A) Basic.

[ ] (B) Alternate I.

[ ] (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [ *offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

| FAR Clause # | Title | Date | Change |
|--------------|-------|------|--------|
| =====        |       |      |        |

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

## 52.204-90 Offeror Identification. (Deviation)

(Feb 2026)

### OFFEROR IDENTIFICATION (FEB 2026) (DEVIATION)

If the Offeror will not have an active Federal Government contracts registration in the System for Award Management (<https://www.sam.gov>) when submitting its offer, it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.

(a) *Definitions.* As used in this provision-

*Commercial and Government Entity (CAGE) code* has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

*Common parent* means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

*Electronic Funds Transfer (EFT) indicator* means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

*Highest-level owner* means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

*Immediate owner* means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

*Predecessor* means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

*Taxpayer Identification Number* means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

*Unique entity identifier (UEI)* has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(b) *Unique entity identifier (UEI).*

(1) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(2) If the Offeror does not have a UEI, it shall go to <https://www.sam.gov> to obtain one. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) *Taxpayer identification.* The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

☐ TIN: \_\_\_\_\_;

☐ TIN has been applied for; or

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government; or

☐ Offeror is an agency or instrumentality of the Federal Government.

(2) *Type of organization.*

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4; or

☐ Other.

(3) *Common parent.*

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or

☐ Name and TIN of common parent:

Name: \_\_\_\_\_

TIN: \_\_\_\_\_

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)).

(d) Commercial and Government Entity (CAGE) code.

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word "CAGE" before the code. The Offeror may obtain a CAGE code as indicated in the following table.

| If the Offeror is...                               | Then...                          |
|----------------------------------------------------|----------------------------------|
| Located in the United States or its outlying areas | Submit a request to the DLA CAGE |

|                                                                                                                                                             |                                                                                                                                                                                                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                                                                                                                             | Branch via <a href="https://cage.dla.mil">https://cage.dla.mil</a>                                                                                                                                   |
| Located outside the United States and its outlying areas and its country is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation | Contact the appropriate National Codification Bureau ( <a href="https://www.nato.int/structur/ac/135/about/contacts">https://www.nato.int/structur/ac/135/about/contacts</a> )                       |
| Located outside the United States and its outlying areas and its country is not a member of NATO or a sponsored nation                                      | Contact the NATO Support and Procurement Agency (NSPA) ( <a href="https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx">https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx</a> ) |

(2) The Offeror shall provide the CAGE code and legal business name (Do not use a "doing business as" name) for-

- (i) Its immediate owner(s), if any;
- (ii) Its highest-level owner, if any; and
- (iii) Any predecessor(s), or predecessor of an Offeror's predecessor, that held a Federal contract or grant within the last three years.

| Owner Type          | CAGE Code | Legal Business Name |
|---------------------|-----------|---------------------|
| Immediate owner     | =====     | =====               |
| Highest-level owner | =====     | =====               |
| Predecessor*        | =====     | =====               |

\* Predecessor CAGE code may be marked "Unknown."

(3) If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)

**52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Deviation) (Feb 2026)**

**REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2026) (DEVIATION)**

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

**52.211-12 Liquidated Damages-Construction.**

**(Sep 2000)**

**LIQUIDATED DAMAGES-CONSTRUCTION (SEPT 2000)**

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of \_\_\_\_ [Contracting Officer insert amount] for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

**52.216-1 Type of Contract. (Deviation)**

**(Feb 2026)**

Type of Contract (Feb 2026) (Deviation)

The Government contemplates award of a **Firm Fixed Price (FFP) Design-Build Construction** contract resulting from this solicitation.

(End of provision)

**52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation)**

**(Feb 2026)**

**NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION)**

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

**52.219-28 Postaward Small Business Program Rerepresentation. (Deviation)**

**(Feb 2026)**

**POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION)**

(a) *Definitions.* As used in this clause-

*Long-term contract* means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

*Small business concern-*

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under \_\_\_\_ NAICS Code assigned to \_\_\_\_ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [\_\_\_\_ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [\_\_\_\_The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [\_\_\_\_The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(6) *HUBZone joint venture eligible under the HUBZone Program.*[ *Complete only if the offeror is a HUBZone small business concern.* ] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [\_\_\_\_The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [\_\_\_\_Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

### 52.223-3 Hazardous Material Identification and Safety Data. (Deviation)

(Feb 2026)

#### HAZARDOUS MATERIAL IDENTIFICATION AND SAFETY DATA (FEB 2026) (DEVIATION)

(a) *Hazardous material*, as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).

(b) The Offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Safety Data Sheet submitted under this contract.

| Material (If none, insert <i>None</i> ) | Identification No. |
|-----------------------------------------|--------------------|
| =====                                   | =====              |
| =====                                   | =====              |
| =====                                   | =====              |

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No. 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

- (g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.
- (h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:
- (1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-
    - (i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;
    - (ii) Obtain medical treatment for those affected by the material; and
    - (iii) Have others use, duplicate, and disclose the data for the Government for these purposes.
  - (2) To use, duplicate, and disclose data furnished under this clause, in accordance with subparagraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.
  - (3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

**52.223-11 Ozone-Depleting Substances. (Deviation) (Feb 2026)**

**OZONE-DEPLETING SUBSTANCES (FEB 2026) (DEVIATION)**

- (a) *Definition.* As used in this clause-

*Ozone-depleting substance* means any substance the Environmental Protection Agency designates in 40 CFR part 82 as-

- (1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or
- (2) Class II, including, but not limited to, hydrochlorofluorocarbons.

(b) *Requirement.* In accordance with 40 CFR 82.84(a)(5), the Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j(b), (c), (d), and (e) and 40 CFR part 82, subpart E, as follows:

Warning: Contains (or manufactured with, if applicable) \* \_\_\_\_\_, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

\* The Contractor shall insert the name of the substance(s).

(End of clause)

**52.225-11 Buy American-Construction Materials under Trade Agreements. (Deviation) (Feb 2026)**

**BUY AMERICAN-CONSTRUCTION MATERIALS UNDER TRADE AGREEMENTS (FEB 2026) (DEVIATION)**

- (a) *Definitions.* As used in this clause-

*Caribbean Basin country construction material* means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

*Commercially available off-the-shelf (COTS) item-*

- (1) Means any item of supply (including construction material) that is-
  - (i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);
  - (ii) Sold in substantial quantities in the commercial marketplace; and
  - (iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and
- (2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

*Component* means an article, material, or supply incorporated directly into a construction material.

*Construction material* means an article, material, or supply brought to the construction site by the Contractor or subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

*Cost of components* means-

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

*Critical component* means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

*Critical item* means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

*Designated country* means any of the following countries:

(1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);

(2) A Free Trade Agreement (FTA) country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or Singapore);

(3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or

(4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

*Designated country construction material* means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

*Domestic construction material* means-

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

*Fastener* means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

*Foreign construction material* means a construction material other than a domestic construction material.

*Foreign iron and steel* means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

*Free Trade Agreement country construction material* means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

*Least developed country construction material* means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a least developed country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

*Predominantly of iron or steel or a combination of both* means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

*Steel* means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

*United States* means the 50 States, the District of Columbia, and outlying areas.

*WTO GPA country construction material* means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a WTO GPA country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) Construction materials.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C.1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.

(2) The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

(3) The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

\_\_\_\_\_ [Contracting Officer is to list applicable excepted materials or indicate "none"]

(4) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that-

- (i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components.*

(1) The cost of a particular domestic construction material subject to the restrictions of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) [Reserved]

(3) [Reserved]

(B) *For domestic construction material that is a critical item or contains critical components.*

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) [Reserved]

(3) [Reserved]

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1) (i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(4) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data.* To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

| Foreign and Domestic Construction Materials Price Comparison |                 |          |                  |
|--------------------------------------------------------------|-----------------|----------|------------------|
| Construction material description                            | Unit of measure | Quantity | Price (dollars)* |
| Item 1:                                                      |                 |          |                  |

|                                 |       |       |       |
|---------------------------------|-------|-------|-------|
| Foreign construction material.  | ===== | ===== | ===== |
| Domestic construction material. | ===== | ===== | ===== |
| Item 2:                         |       |       |       |
| Foreign construction material.  | ===== | ===== | ===== |
| Domestic construction material. | ===== | ===== | ===== |

[\* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)].

[ List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary. ]

[ Include other applicable supporting information. ]

(End of clause)

#### 52.227-4 Patent Indemnity-Construction Contracts. (Alternate I)

(Dec 2007) Alternate I (Dec 2007)

Alternate I (DEC 2007). As prescribed in 27.201-2 (d)(2), designate the first paragraph of the basic clause as paragraph (a) and add the following paragraph (b) to the basic clause:

(b) This patent indemnification shall not apply to the following items: \_\_\_\_\_[Contracting Officer list the items to be excluded.]

#### 52.228-1 Bid Guarantee.

(Sep 1996)

Bid Guarantee (Sept 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, *e.g.*, bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds-

(1) To unsuccessful bidders as soon as practicable after the opening of bids; and

(2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be **20** percent of the bid price or **\$3,000,000**, whichever is less.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of clause)

**52.229-2 North Carolina State and Local Sales and Use Tax.**

**(Apr 1984)**

**NORTH CAROLINA STATE AND LOCAL SALES AND USE TAX (APR 1984)**

(a) "Materials," as used in this clause, means building materials, supplies, fixtures, and equipment that become a part of or are annexed to any building or structure erected, altered, or repaired under this contract.

(b) If this is a fixed-price contract, the contract price includes North Carolina State and local sales and use taxes to be paid on materials, notwithstanding any other provision of this contract. If this is a cost-reimbursement contract, any North Carolina State and local sales and use taxes paid by the Contractor on materials shall constitute an allowable cost under this contract.

(c) At the time specified in paragraph (d) of this section, the Contractor shall furnish the Contracting Officer certified statements setting forth the cost of the materials purchased from each vendor and the amount of North Carolina State and local sales and use taxes paid. In the event the Contractor makes several purchases from the same vendor, the certified statement shall indicate the invoice numbers, the inclusive dates of the invoices, the total amount of the invoices, and the North Carolina State and local sales and use taxes paid. The statement shall also include the cost of any tangible personal property withdrawn from the Contractor's warehouse stock and the amount of North Carolina State and local sales or use tax paid on this property by the Contractor. Any local sales or use taxes included in the Contractor's statements must be shown separately from the State sales or use taxes. The Contractor shall furnish any additional information the Commissioner of Revenue of the State of North Carolina may require to substantiate a refund claim for sales or use taxes. The Contractor shall also obtain and furnish to the Contracting Officer similar certified statements by its subcontractors.

(d) If this contract is completed before the next October 1, the certified statements to be furnished pursuant to paragraph (c) of this clause shall be submitted within 60 days after completion. If this contract is not completed before the next October 1, the certified statements shall be submitted on or before November 30 of each year and shall cover taxes paid during the 12-month period that ended the preceding September 30.

(e) The certified statements to be furnished pursuant to paragraph (c) of this clause shall be in the following form:

I hereby certify that during the period \_\_\_\_ to \_\_\_\_ [insert dates], \_\_\_\_ [insert name of Contractor or subcontractor] paid North Carolina State and local sales and use taxes aggregating \$ \_\_\_\_ (State) and \$ \_\_\_\_ (local), with respect to building materials, supplies, fixtures, and equipment that have become a part of or annexed to a building or structure erected, altered, or repaired by \_\_\_\_ [insert name of Contractor or subcontractor] for the United States of America, and that the vendors from whom the property was purchased, the dates and numbers of the invoices covering the purchases, the total amount of the invoices of each vendor, the North Carolina State and local sales and use taxes paid on the property (shown separately), and the cost of property withdrawn from warehouse stock and North Carolina State and local sales or use taxes paid on this property are as set forth in the attachments.

(End of clause)

**52.232-5 Payments under Fixed-Price Construction Contracts.**

**(May 2014)**

**PAYMENTS UNDER FIXED-PRICE CONSTRUCTION CONTRACTS (MAY 2014)**

(a) *Payment of price.* The Government shall pay the Contractor the contract price as provided in this contract.

(b) *Progress payments.* The Government shall make progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished which meets the standards of quality established under the contract, as approved by the Contracting Officer.

(1) The Contractor's request for progress payments shall include the following substantiation:

- (i) An itemization of the amounts requested, related to the various elements of work required by the contract covered by the payment requested.
- (ii) A listing of the amount included for work performed by each subcontractor under the contract.
- (iii) A listing of the total amount of each subcontract under the contract.
- (iv) A listing of the amounts previously paid to each such subcontractor under the contract.
- (v) Additional supporting data in a form and detail required by the Contracting Officer.

(2) In the preparation of estimates, the Contracting Officer may authorize material delivered on the site and preparatory work done to be taken into consideration. Material delivered to the Contractor at locations other than the site also may be taken into consideration if-

(i) Consideration is specifically authorized by this contract; and

(ii) The Contractor furnishes satisfactory evidence that it has acquired title to such material and that the material will be used to perform this contract.

(c) *Contractor certification.* Along with each request for progress payments, the Contractor shall furnish the following certification, or payment shall not be made: (However, if the Contractor elects to delete paragraph (c)(4) from the certification, the certification is still acceptable.)

I hereby certify, to the best of my knowledge and belief, that-

(1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;

(2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;

(3) This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and

(4) This certification is not to be construed as final acceptance of a subcontractor's performance.

\_\_\_\_ (Name)

\_\_\_\_ (Title)

\_\_\_\_ (Date)

(d) *Refund of unearned amounts.* If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall-

(1) Notify the Contracting Officer of such performance deficiency; and

(2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8 thday after the date of receipt of the unearned amount until-

(i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or

(ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(e) *Retainage.* If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(f) *Title, liability, and reservation of rights.* All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

(1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or

(2) Waiving the right of the Government to require the fulfillment of all of the terms of the contract.

(g) *Reimbursement for bond premiums.* In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (e) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(h) *Final payment.* The Government shall pay the amount due the Contractor under this contract after-

(1) Completion and acceptance of all work;

(2) Presentation of a properly executed voucher; and

(3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of 1940 (31 U.S.C.3727 and 41 U.S.C.6305).

(i) *Limitation because of undefinitized work.* Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.

(j) *Interest computation on unearned amounts.* In accordance with 31 U.S.C.3903(c)(1), the amount payable under paragraph (d)(2) of this clause shall be-

(1) Computed at the rate of average bond equivalent rates of 91-day Treasury bills auctioned at the most recent auction of such bills prior to the date the Contractor receives the unearned amount; and

(2) Deducted from the next available payment to the Contractor.

(End of clause)

**52.248-3 Value Engineering-Construction.**

**(Oct 2025)**

**VALUE ENGINEERING-CONSTRUCTION (OCT 2025)**

(a) *General.* The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any instant contract savings realized from accepted VECP's, in accordance with paragraph (f) of this clause.

(b) *Definitions.* "Collateral costs," as used in this clause, means agency costs of operation, maintenance, logistic support, or Government-furnished property.

*Collateral savings,* as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

*Contractor's development and implementation costs,* as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

*Government costs,* as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistic support. The term does not include the normal administrative costs of processing the VECP.

*Instant contract savings,* as used in this clause, means the estimated reduction in Contractor cost of performance resulting from acceptance of the VECP, minus allowable Contractor's development and implementation costs, including subcontractors' development and implementation costs (see paragraph (h) of this clause).

*Value engineering change proposal (VECP)* means a proposal that-

(1) Requires a change to this, the instant contract, to implement; and

(2) Results in reducing the contract price or estimated cost without impairing essential functions or characteristics; *provided*, that it does not involve a change-

(i) In deliverable end item quantities only; or

(ii) To the contract type only.

(c) *VECP preparation.* As a minimum, the Contractor shall include in each VECP the information described in paragraphs (c)(1) through (7) of this clause. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

(1) A description of the difference between the existing contract requirement and that proposed, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, and the effect of the change on the end item's performance.

(2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.

(3) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECP. The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under paragraph (h) of this clause.

(4) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.

(5) A prediction of any effects the proposed change would have on collateral costs to the agency.

(6) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.

(7) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) *Submission.* The Contractor shall submit VECP's to the Resident Engineer at the worksite, with a copy to the Contracting Officer.

(e) Government action.

(1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause. The Contracting Officer may accept the VECP, even though an agreement on price reduction has not been reached, by issuing the Contractor a notice to proceed with the change. Until a notice to proceed is issued or a contract modification applies a VECP to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) Sharing-

(1) *Rates.* The Government's share of savings is determined by subtracting Government costs from instant contract savings and multiplying the result by-

- (i) 45 percent for fixed-price contracts; or
- (ii) 75 percent for cost-reimbursement contracts.

(2) *Payment.* Payment of any share due the Contractor for use of a VECP on this contract shall be authorized by a modification to this contract to-

- (i) Accept the VECP;
- (ii) Reduce the contract price or estimated cost by the amount of instant contract savings; and
- (iii) Provide the Contractor's share of savings by adding the amount calculated to the contract price or fee.

(g) *Collateral savings.* If a VECP is accepted, the Contracting Officer will increase the instant contract amount by 20 percent of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price or estimated cost, at the time the VECP is accepted, or \$100,000, whichever is greater. The Contracting Officer is the sole determiner of the amount of collateral savings.

(h) *Subcontracts.* The Contractor shall include an appropriate value engineering clause in any subcontract of \$90,000 or more and may include one in subcontracts of lesser value. In computing any adjustment in this contract's price under paragraph (f) of this clause, the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs clearly resulting from a VECP accepted by the Government under this contract, but shall exclude any value engineering incentive payments to a subcontractor. The Contractor may choose any arrangement for subcontractor value engineering incentive payments; *provided*, that these payments shall not reduce the Government's share of the savings resulting from the VECP.

(i) *Data.* The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:

These data, furnished under the Value Engineering-Construction clause of contract \_\_\_\_\_, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations.

If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

## 52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://acquisition.gov>

<https://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of clause)

**52.252-4 Alterations in Contract.**

**(Apr 1984)**

**ALTERATIONS IN CONTRACT (APR 1984)**

Portions of this contract are altered as follows:

== == ==

(End of clause)

**52.252-6 Authorized Deviations in Clauses.**

**(Nov 2020)**

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any **FAR or DFARS (48 CFR Chapter 1 and 2)** clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

**DFARS Clauses Incorporated by Full Text**

**252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation.**

**(Dec 2019)**

**COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)**

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

**252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.**

**(Nov 2025)**

**CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)**

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

- (1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: **CMMC Level 1 (Self)** for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and
- (ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;
- (2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;
- (3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;
- (4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract;
- (5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

- (1) Submit to the Contracting Officer-
- (i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and
- (ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;
- (2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and
- (3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

- (1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and
- (2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

**252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.**

**(Nov 2025)**

**NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)**

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)", and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: **CMMC Level 1 (Self)**. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

**252.215-7008 Only One Offer.**

**(Dec 2022)**

**ONLY ONE OFFER (DEC 2022)**

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable \_\_\_\_ [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

**252.223-7001 Hazard Warning Labels.**

**(Dec 1991)**

**HAZARD WARNING LABELS (DEC 1991)**

(a) "Hazardous material," as used in this clause, is defined in the Hazardous Material Identification and Material Safety Data clause of this contract.

(b) The Contractor shall label the item package (unit container) of any hazardous material to be delivered under this contract in accordance with the Hazard Communication Standard (29 CFR 1910.1200 et seq). The Standard requires that the hazard warning label conform to the requirements of the standard unless the material is otherwise subject to the labelling requirements of one of the following statutes:

(1) Federal Insecticide, Fungicide and Rodenticide Act;

(2) Federal Food, Drug and Cosmetics Act;

(3) Consumer Product Safety Act;

(4) Federal Hazardous Substances Act; or

(5) Federal Alcohol Administration Act.

(c) The Offeror shall list which hazardous material listed in the Hazardous Material Identification and Material Safety Data clause of this contract will be labelled in accordance with one of the Acts in paragraphs (b)(1) through (5) of this clause instead of the Hazard Communication Standard. Any hazardous material not listed will be interpreted to mean that a label is required in accordance with the Hazard Communication Standard.

| MATERIAL (If None, Insert "None.") | ACT   |
|------------------------------------|-------|
| =====                              | ===== |
| =====                              | ===== |
| =====                              | ===== |

(d) The apparently successful Offeror agrees to submit, before award, a copy of the hazard warning label for all hazardous materials not listed in paragraph (c) of this clause. The Offeror shall submit the label with the Material Safety Data Sheet being furnished under the Hazardous Material Identification and Material Safety Data clause of this contract.

(e) The Contractor shall also comply with MIL-STD-129, Marking for Shipment and Storage (including revisions adopted during the term of this contract).

(End of clause)

#### 252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

##### WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

**NAVY CONSTRUCTION / FACILITIES MANAGEMENT INVOICE**

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

## NAVY CONSTRUCTION / FACILITIES MANAGEMENT INVOICE

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

*[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]*

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| <i>Field Name in WAWF</i> | <i>Data to be entered in WAWF</i> |
|---------------------------|-----------------------------------|
| Pay Official DoDAAC       | <u>N68732</u>                     |
| Issue By DoDAAC           | <u>N40085</u>                     |
| Admin DoDAAC              | <u>N44249</u>                     |
| Inspect By DoDAAC         | <u>N/A</u>                        |
| Ship To Code              | <u>N/A</u>                        |
| Ship From Code            | <u>N/A</u>                        |
| Mark For Code             | <u>N/A</u>                        |
| Service Approver (DoDAAC) | <u>N/A</u>                        |

|                           |               |
|---------------------------|---------------|
| Service Acceptor (DoDAAC) | <u>N/A</u>    |
| Accept at Other DoDAAC    | <u>N44249</u> |
| LPO DoDAAC                | <u>N44249</u> |
| DCAA Auditor DoDAAC       | <u>N/A</u>    |
| Other DoDAAC(s)           | <u>N44249</u> |

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

**WAWF POC:**

**\*\*Please notify your Contract COR by email on all submitted WAWF Invoices\*\***

COR/Inspector POC: To be provided at time of award.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

**252.236-7001 Contract Drawings and Specifications.**

**(Aug 2000)**

**CONTRACT DRAWINGS AND SPECIFICATIONS (AUG 2000)**

(a) The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.

(b) The Contractor shall-

- (1) Check all drawings furnished immediately upon receipt;
- (2) Compare all drawings and verify the figures before laying out the work;
- (3) Promptly notify the Contracting Officer of any discrepancies;
- (4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and
- (5) Reproduce and print contract drawings and specifications as needed.

(c) In general--

- (1) Large-scale drawings shall govern small-scale drawings; and
- (2) The Contractor shall follow figures marked on drawings in preference to scale measurements.

(d) Omissions from the drawings or specifications or the misdescription of details of work that are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.

(e) The work shall conform to the specifications and the contract drawings identified on the following index of drawings:

**Project WO#1894554**

(End of clause)

## Section 00 71 00 - Contracting Definitions

### FAR Clauses Incorporated by Reference

| Number   | Title        | Effective Date | Alternate/<br>Deviation | Variation<br>Effective Date |
|----------|--------------|----------------|-------------------------|-----------------------------|
| 52.202-1 | Definitions. | Jun 2020       |                         |                             |

## Section 00 73 00 - Supplementary Conditions

### COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK

The Contractor shall be required to (a) commence work under this contract within fifteen (15) calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than 1,461 calendar days. The time stated for completion shall include final cleanup of the premises.

### AUTHORITY

1. No person other than the Contracting Officer has authority to bind the Government with respect to this contract.
2. No action or omission of any government employee or representative other than the Contracting Officer shall increase or decrease the scope of this contract or shall otherwise modify the terms and conditions of this contract.
3. In no event shall any of the following be effective or binding on the Government or imputed to the Contracting Officer with respect to this contract:
  - (a) An understanding or agreement between the Contractor and anyone other than the Contracting Officer;
  - (b) A purported modification or change order issued by anyone other than the Contracting Officer;
  - (c) A promise by anyone other than the Contracting Officer to provide additional funding or make payments; or
  - (d) An order, direction, consent, or permission from anyone other than the Contracting Officer to:
    - (i) Incur costs in excess of a specified estimated cost, allotment of funds, or other ceiling; or
    - (ii) Expend hours in excess of a specified level of effort.

### NOTICE OF BONDING REQUIREMENTS

Within 10 days after receipt of award, the offeror to whom the award is made shall furnish the bonds required by FAR Clause 52.228-15.

Offerors are hereby notified that the contract time for purposes of fixing the completion date, default, and liquidated damages will be as stated in FAR Clause 52.211-10 Commencement, Prosecution, and Completion of Work, regardless of when performance and payment bonds or deposits in lieu of surety are executed.

### UTILITIES FOR CONSTRUCTION AND TESTING

The Contractor shall be responsible for obtaining, either from available Government sources or local utility companies, all utilities required for construction and testing. The Contractor shall provide these utilities at his expense, paid for at the current utility rate delivered to the job site. The Contractor shall provide and maintain all temporary utility connections and distribution lines, and all meters required to measure the amount of each utility used.

### MINIMUM INSURANCE REQUIREMENTS

In accordance with FAR 28.307-2, the coverage specified below is the minimum insurance required for this contract:

- (a) Workers' compensation and employer's liability. Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least \$100,000 shall be required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers. (See 28.305(c) for treatment of contracts subject to the Defense Base Act.)
- (b) General liability.
  - (1) The contracting officer shall require bodily injury liability insurance coverage written on the comprehensive form of policy of at least \$500,000 per occurrence.
  - (2) Property damage liability insurance shall be required only in special circumstances as determined by the agency.
- (c) Automobile liability. The contracting officer shall require automobile liability insurance written on the comprehensive form of policy. The policy shall provide for bodily injury and property damage liability covering the operation of all automobiles used in connection with performing the contract. Policies covering automobiles operated in the United States shall provide coverage of at least \$200,000 per person and \$500,000 per occurrence for bodily injury and \$20,000 per occurrence for property damage. The amount of liability coverage on other policies shall be commensurate with any legal requirements of the locality and sufficient to meet normal and customary claims.

(d) Aircraft public and passenger liability. When aircraft are used in connection with performing the contract, the contracting officer shall require aircraft public and passenger liability insurance. Coverage shall be at least \$200,000 per person and \$500,000 per occurrence for bodily injury, other than passenger liability, and \$200,000 per occurrence for property damage. Coverage for passenger liability bodily injury shall be at least \$200,000 multiplied by the number of seats or passengers, whichever is greater.

(e) Vessel liability. When contract performance involves use of vessels, the contracting officer shall require, as determined by the agency, vessel collision liability and protection and indemnity liability insurance. The certificate shall contain an endorsement to the effect that cancellation or any material change in the policies adversely affecting the interests of the Government in such insurance shall not be effective until 30 days after written notice thereof to the Contracting Officer.

#### **CONTRACTOR PERFORMANCE INFORMATION**

Contractor Performance Information: Contractor's performance will be evaluated using the respective contractor performance evaluation report entry system located on the website <http://www.cpars.gov/>. Prior to commencement of work, the contractor is required to provide the government with the name, phone number, and email address of the "Contractor's Representative" that will be responsible for receipt and review of draft performance evaluations prepared by the government in the appropriated system. It is the contractor's responsibility to keep this contract information current.

#### **DEFINITIZATION OF EQUITABLE ADJUSTMENTS FOR CHANGE ORDERS UNDER CONSTRUCTION CONTRACTS**

1. No data is available regarding the timely definitization of equitable adjustments for change orders under construction contracts.
2. The REA definitization information referenced in Navy Marine Corps Acquisition Regulation Supplement (NMCARS) 5236.211(b)(2), should not be utilized.
3. There are no agency-specific policies and procedures that apply to the definitization of equitable adjustments for change orders under construction contracts.

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This Contract (or Purchase Order) contains rated order quantities certified for national defense use, and you are required to follow all the provisions of the DPAS regulation (DPAS Regulation - 15 CFR Part 700.12) only as it pertains to the rated quantities.

#### **PGI PAYMENT INSTRUCTIONS**

The Procedures, Guidance and Information (PGI), Section 204.7108 link provides a standard set of payment instructions (in table format) that defines how payments should be made based on the payment request type and the service being acquired.

The link to the PGI table is as follows:

[https://www.acq.osd.mil/dpap/dars/pgi/pgi.htm/current/PGI204\\_71.htm#payment\\_instructions](https://www.acq.osd.mil/dpap/dars/pgi/pgi.htm/current/PGI204_71.htm#payment_instructions)

## **Section 01 00 00 - General Requirements**

### **Requirements**

Barracks Camp Lejeune and New River Package #2 - P1634RR, P1635RR, P1636RR, P1637RR, P1638RR, and P2803RR